

天猫商户服务协议

(Tmall Merchant Service Agreement)

(最新更新日期：2026 年 3 月 21 日)

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本协议由同意并遵照本协议规定使用天猫服务的法律实体（下称“商户”、“甲方”或“您”）、浙江天猫技术有限公司（下称“乙方”）、浙江天猫网络有限公司（下称“丙方”）及浙江天猫商业科技有限公司（下称“丁方”）共同缔结。

This Agreement is entered into among the legal entity that agrees with this Agreement and uses Services in accordance herewith (“Merchant” , “Party A” or “you”), Zhejiang Tmall Technology Co., Ltd. (“Party B”), Zhejiang Tmall Network Co., Ltd.(“Party C”) and Zhejiang Tmall Commercial Technology Co., Ltd. (“Party D”).

本协议中四方合称协议方，乙方、丙方及丁方合称“天猫”。

In this Agreement, Party A, Party B ,Party C and Party D are collectively referred to as “Parties” , and Party B , Party C and Party D are collectively referred to as “Tmall” .

一、定义 (Definition)

“天猫平台”指由天猫提供互联网信息服务及相关软件、技术支持的网站（网址为 www.tmall.com 或天猫根据业务需要不时修改的包括计算机或移动设备互联网的 URL 等）及客户端（如手机 APP 等）。

Tmall Platform refers to the website for which Tmall provide Internet Information Service and related software and technical support (at www.tmall.com or other URL as modified by Tmall from time to time, such as URL for computers and mobile devices, etc.) and client (such as mobile applications, etc.).

“商户”指于天猫平台经营商品或服务的法律实体。

Merchant refers to the legal entity which operates commodities or services on Tmall Platform.

“消费者”指于天猫平台进行购物并将所购商品或服务用于消费的任何自然人或组织，亦可称为“买家”。

Consumer or Buyer refers to any individual or entity that purchases commodities or services on Tmall Platform for consumption.

“规则”指所有天猫平台规则频道、喵言喵语、论坛、帮助中心等板块内已发布及后续发布的全部规则、实施细则、考核标准、解读、产品流程说明、公告等。

Rules refers to all rules, regulations, appraisal standards, interpretations, process explanations, announcements, etc., published or to be published in rules channel, maowo.tmall.com, forums, help centers or other sections in Tmall Platform.

“入驻标准”指商户使用天猫服务须满足的前提条件，如企业注册资本、商标注册情况等要求，具体以天猫平台规则频道对外公示的相关标准为准。

Admission Standards refers to the requirements which shall be satisfied if the Merchants intend to use Services , such as requirements on registered capital, trademark registration, etc., which shall be subject to those published in rules channel in Tmall Platform.

“天猫服务”是指由天猫在天猫平台向商户提供的互联网信息服务及与此相关的软件服务、二级域名服务、积分系统软件服务等。**本协议项下的服务系您作为商家在天猫平台经营所需的基础服务，均同时提供、同时终止，商户不可进行单独订购或使用。**

Tmall services refer to the Internet Information Service and the Software Service in Relation to Internet Information Service, Secondary Domain Name Service, Credit System Software Service, etc., provided by Tmall to Merchants on Tmall Platform. **All services hereunder constitute the fundamental services required for you as a merchant, to conduct business on the Tmall platform. They shall be provided and terminated simultaneously and the Merchants shall not choose to purchase or use only one of them.**

“互联网信息服务”指由丙方于天猫平台为商户展示店铺及商品/服务信息的服务。

Internet Information Service refers to the service provided by Party C of displaying store and commodity/service information on Tmall Platform for the Merchants.

“与互联网信息服务相关的软件服务”指由乙方为商户提供的与信息展示、订单生成等相关的软件服务。

Software Service in Relation to Internet Information Service refers to the software service provided by Party B for the Merchants in connection with information display and order creation.

“二级域名服务”指丙方根据《[天猫店铺命名规范](#)》可允许商户使用带有其品牌关键字、商号等标识的二级域名。

Secondary Domain Name Service refers to the service provided by Party C of allowing Merchants to use the secondary domain names with the key words of their brand, trade name and other marks in accordance with [Regulations for Naming Tmall Stores](#).

“积分系统软件服务”指乙方向商户提供的、与积分系统软件使用相关的软件服务。

Credit System Software Service refers to the software service provided by Party B to the Merchants in connection with the use of credit system software.

“商家基础软件服务”指丁方向商户提供的、与平台交易相关的商家基础软件服务。

Merchant Basic Software Service refers to the software service provided by Party D to the Merchants in connection with the transaction management through Internet.

“其他服务”指天猫向商户提供的其他服务，具体以本协议附件二或补充协议中的约定为准。

Other Services refers to the other services provided by Tmall to the Merchants, the details of which are subject to Appendix 2 or supplementary agreement hereto.

“服务开通”指商户登陆天猫平台网站并完成信息提交、协议签署、费用缴纳后，经天猫审查通过，天猫允许商户于天猫平台开设网络店铺、使用天猫服务并对商户进行通知的过程。

Service Activation refers to the process of Tmall, after its review, permitting the Merchant to open online store on Tmall Platform and use Services and notifying the Merchant of such permission, after the Merchant logs in to Tmall Platform website, submits information, executes agreement and makes payment accordingly.

“考核标准”指天猫为提升消费者体验及平台商户经营能力而从品牌、店铺等多维度针对商户进行经营考核所制定的相关指标等标准。

Appraisal Standards refers to the indexes and standards formulated by Tmall to appraise the Merchants in terms of brand, store and other factors so as to improve consumer experience and operational capabilities of the Merchants on Tmall Platform.

“天猫商户服务条款”指本协议附件二或由协议方另行签署的《天猫商户服务条款（保底）》。如协议方另行签署的《天猫商户服务条款（保底）》与本协议附件二存在冲突的，应以另行签署的《天猫商户服务条款（保底）》为准。

Tmall Merchant Service Terms refers to Appendix 2 hereto, or the Tmall Merchant Service Terms (Minimum Guarantee) otherwise executed among the Parties. Where there is any conflict between such Tmall Merchant Service Terms (Minimum Guarantee) otherwise executed among the Parties and Appendix 2 hereto, the former shall prevail.

“支付服务” 指由各支付机构向商户提供的款项代收代付服务及附随的软件系统服务。

“Payment Services” refers to services for collecting and making payments on behalf of the Merchants and related software service system provided to the Merchants by Payment Institutions.

“支付机构” 指向商户提供支付服务的银行业金融机构或非银行支付机构。

“Payment Institution” refers to banking financial institutions or non-bank payment institutions that provide Payment Services to the Merchants.

“支付账户” 指商户在支付机构开通的用于接受支付服务的账户。

“Payment Account” refers to the account opened by the Merchants with Payment Institutions for the purpose of receiving Payment Services.

“待结算资金” 指由支付机构为商户代收代付且处于待结算状态的资金。天猫依本协议约定通知支付机构打款商家后至实际结算（含提现）至商家支付账户前，交易款项即处于待结算状态。

“Funds to be settled” refers to funds that are collected and paid by the Payment Institutions for merchants and are in a state of pending settlement. The transaction payment will be in a pending settlement state from the time Tmall instructs the Payment Institutions to transfer the funds to the Merchant according to this agreement until the actual settlement (including withdrawal) to the Merchant's Payment Account.

“确认收货” 指天猫平台根据订单交易情况识别或判断买家已确认收到全部或部分商品并推进交易状态至终态（交易成功/交易关闭）的时点，包括买家按照交易流程点击确认收

货或系统根据规则自动确认收货（如：根据超时说明在等待买家确认收货阶段超时未操作、天猫平台介入争议处理并形成处理结果等）。

“Confirmation of Receipt” refers to the point in time when the Tmall Platform identifies or determines that the Buyer has confirmed receipt of all or part of the goods and advances the transaction status to the final state (transaction successful/transaction closed). This includes scenarios where the Buyer clicks to confirm receipt according to the transaction process or where the system automatically confirms receipt according to the Rules (such as the transaction timing out during the waiting period for the buyer's confirmation, or Tmall intervening in dispute resolution and forming a resolution).

“关联公司”指阿里巴巴集团控股有限公司（Alibaba Group Holding Limited）最新上市公司年报 (<http://www.alibabagroup.com/cn/ir/secfilings>) 披露的天猫的关联公司。

Tmall's Affiliate refers to any affiliate of Tmall as disclosed by Alibaba Group Holding Limited in its latest annual report (URL: <http://www.alibabagroup.com/cn/ir/secfilings>)

二、协议范围及效力 (Scope of the Agreement and Term)

本协议包括协议正文及所有天猫已发布或将来发布并依法通知商户的各类规则(可于天猫规则频道（现域名为 guize.tmall.com）和商户后台的“商家中心”查看，相同规则的内容如有不同，以天猫规则频道显示为准)。所有天猫公布的规则均为本协议不可分割的一部分，与本协议正文具有同等法律效力。

This Agreement comprises of the main body hereof and all Rules published or to be published by Tmall and notified to Merchants in accordance with laws (please refer to Tmall rules channel (current domain name: guize.tmall.com) and Merchants Center at the back end for Merchants. If there is any conflict between any Rules displayed at different places, those displayed in Tmall rules channel shall prevail). All Rules published by Tmall shall constitute an integral part of, and have the same legal force and effect with the main body of, this Agreement.

为不断提升消费者及商户体验、适应法律法规要求等原因,天猫可根据需要修改本协议,对于影响商户权利义务的变更天猫将提前至少 7 天在天猫平台网站公示。**对本协议的修订一经生效即构成对协议方权利义务的补充,成为本协议的一部分。如您不同意相关变更,须通知天猫,天猫可选择终止相关变更或任一方可在变更生效前选择解约(商户可在商户后台选择主动退出)。如您在相关变更生效后仍登录或继续使用天猫服务将表示您接受修订后的协议。**除另行声明或签署协议外,天猫任何基于提升消费者及商户体验、平台服务升级等目的所扩大的服务范围或软件功能的增强均受本协议的约束。

In order to continue to improve the consumers' and Merchants' experience, adapt to the laws and regulations or otherwise, Tmall may make necessary modifications to this Agreement, provided that Tmall shall make an announcement on Tmall Platform website at least 7 days in advance prior to the effectiveness of any modification that would impact the rights or obligations of the Merchants. **Upon its effectiveness, any modification to this Agreement shall become a supplement to the rights and obligations of the Parties and constitute an integral part of this Agreement. You must notify Tmall if you**

disagree with any modification, in which case Tmall may terminate the relevant modification or either Party may terminate this Agreement prior to the effectiveness thereof at its own discretion (the Merchant may choose to terminate this Agreement voluntarily from its backend). Your continued login or use of Services after the effectiveness of any modification shall be deemed as your acceptance of this Agreement as modified. Unless otherwise stated or with a written agreement, all additions to the scope of Services and all enhancement to the software functions provided by Tmall for the purpose of improving consumers' and Merchants' experience and upgrading the Services shall be subject to this Agreement.

本协议一经您或您授权的任何人点击确认或由您与天猫另行书面签署即于您和天猫之间发生法律效力。对于本协议生效前已经开通天猫服务的商户，本协议构成协议方之间就使用天猫服务所达成协议的修订和补充。

Once it is confirmed by clicking by you or any person authorized by you or it is otherwise executed between you and Tmall, this Agreement shall be legally binding upon both you and Tmall. For Merchants that have activated Services before this Agreement takes effect, this Agreement constitutes the amendment and supplement to the agreements concluded among the Parties in relation to the use of Services.

三、账户使用及信息提交 (Use of Account and Information Submission)

您在使用天猫服务的过程中须使用天猫账户及自设密码登录天猫平台, 您应自行妥善保管天猫账户及密码信息。因账户关联您及天猫的商业信息并可能涉及消费者利益, **未经天猫同意, 您不得向他人转让、授权他人使用或允许他人获取/使用您账户下信息, 否则天猫可终止对该天猫账户提供服务。**

In the process of using the Tmall Services, you must use the Tmall account and your own password to log in to the Tmall Platform. You should properly keep your Tmall account and password by yourself. **You may not transfer or authorize others to use or allow others to obtain/use information under your account without the consent of Tmall, as the account is associated with you and Tmall's business information and may involve consumer interests, otherwise Tmall may terminate the provision of the Services to the Tmall account.**

除天猫存在过错外, 您应对您账户项下的所有行为结果 (如在线签署协议、发布及披露信息等) 负责。通过天猫账户完成的行为均视为您本人行为或已获得您充分授权。

In the absence of fault of Tmall, you shall be responsible for the consequences of all actions under your account (including but not limited to on-line execution of various agreements, publishing and disclosure of information). All actions completed through your Tmall account shall be regarded as your personal actions, or having been fully authorized by you.

商户欲使用本协议下的服务, 须根据入驻标准、规则、天猫页面提示等要求提交相关信息和证明文件。**您了解并同意, 您有义务确保您提供的信息及资料真实、合法、准确、有效, 如有发生变更须及时更新。**基于相关法律法规、平台管理等要求, 商户同意天猫可对商户信息和证明文件进行不定时抽查并就前述目的要求商户提交更多信息或证明文件。**您了解并认**

可天猫仅以大众一般认知水平对商户信息、证明文件及经营权限开通申请进行审查，除法律另有规定外，天猫对商户因信赖审查结果而造成的损失不承担责任。

If the Merchant intends to use the Services hereunder, it must submit relevant information and supporting documents in accordance with the Admission Standards, the Rules and the instructions on the page of Tmall websites. **You understand and agree that you are obliged to ensure that all information and materials provided by you are true, legal, accurate and valid, and you shall timely update the same in case of any change thereof.** The Merchant agrees that, based on the relevant laws and regulations and the requirements of platform management, Tmall may conduct spot check on the Merchant' s information and supporting documents from time to time, and require the Merchant to submit additional information or supporting documents for the above purpose. **You understand and acknowledge that Tmall is only capable of reviewing the Merchant' s information, supporting documents and application for granting operation authority with a knowledge level of the general public, and unless otherwise provided by laws, Tmall shall not be liable for any loss suffered by the Merchant due to its reliance on the result of such review.**

四、保证金 (Deposit)

(一) 保证金的性质 (Nature of Deposit)

本协议项下的保证金系指商户同意以主动缴纳或授权扣款等方式，止付/缴存于天猫指定账户内，具体缴存方式以天猫系统提示为准。保证金依据本协议系商户的自主担保，最终保障商户对本协议履行和遵守，天猫享有对保证金的优先受偿权。

Deposit hereunder refers to certain funds in the account specified by Tmall by voluntary payment, authorized debit , or other means (please follow the instructions on Tmall's system prompts), the payment with which shall be suspended/paid as agreed by the Merchant and which shall be dedicated for use in accordance with this Agreement as the guarantee provided by the Merchant itself, so as to ultimately ensure the performance of and compliance with this Agreement by the Merchant. and Tmall enjoys the first priority of compensation for the deposit.

(二) 保证金的额度及缴存 (Amount and Payment of Deposit)

缴存数额、缴存方式依照天猫入驻标准等相关规则、协议确定。缴存方式如有调整，天猫将提前 15 日通知您。

The amount and payment method of deposit shall be determined in accordance with Tmall's Admission Standards and other related rules and agreements. In case of any change in deposit payment method, Tmall will notify you 15 days in advance.

(三) 保证金的管理和使用(Management and Use of Deposit)

除将保证金止付/缴纳/授权扣款至天猫指定账户管理外，您同意天猫还可按以下方式对保证金进行管理和使用：

In addition to suspension of payment with the deposit and payment/authorized debit of deposit to Tmall' s specified account, you agree that Tmall may also manage and use deposit in the following ways:

1、如您违反相关法律法规、本协议或对买家的承诺，导致或可能导致买家权益受损，或依本协议约定应向买家退款、支付违约金或赔偿款的，**您同意天猫可按天猫平台相关规则及流程进行责任判定**，并基于上述判定划扣保证金以代您向买家退款、支付违约金或赔偿款。

If you violate the relevant laws and regulations, this Agreement or commitment to the Buyer, which results in or may result in any damage to the Buyer' s rights and interests, or if you shall make refund, pay liquidated damages or compensation to the Buyer pursuant to this Agreement, you agree that Tmall may determine liabilities according to the relevant Tmall Platform Rules and procedures, and, based on the above determination, debit an amount from your deposit to make refund, pay liquidated damages or compensation to the Buyer on your behalf.

2、如您违反相关法律法规或本协议，致使天猫权益受损（包括被行政处罚、被判决侵权、商誉受损等），或依本协议应向天猫支付违约金或赔偿款，或您对天猫存在逾期未付款项（无论是否基于本协议）的，您同意天猫可自保证金中扣除相应金额用于上述目的。

If you violate the relevant laws and regulations or this Agreement, causing damage to Tmall' s rights and interests (including without limitation administrative penalty imposed on Tmall, Tmall being judged as having conducted infringement, or damage to Tmall' s goodwill), or if you shall pay Tmall liquidated damages or compensation pursuant to this Agreement, or if you owe any outstanding amount

to Tmall (whether under this Agreement or not), you agree that Tmall may debit the corresponding amount from your deposit to Tmall' s specified account.

3、如您违反与天猫关联公司的约定造成该关联公司经济损失、应向其支付违约金或依据您与天猫关联公司的约定应向消费者等其他第三方退款或支付违约金的, 您授权天猫可应关联公司要求通知支付机构止付保证金的相应金额或直接划扣至关联公司账户。除法律另有规定外, 天猫不就上述指令承担责任, 相关纠纷由您与前述关联公司自行解决。

If you violate any agreement with Tmall' s Affiliate, where economic losses are caused to such Affiliate, you are obliged to pay liquidated damages to such Affiliate, or you are obliged to make refund or pay liquidated damages to consumers or other third parties in accordance with the agreement you made with Tmall' s Affiliate, Tmall is authorized by you to notify Payment Institutions to suspend payment with the corresponding amount out of your deposit, or directly debit the same to the account of such Affiliate, upon the request of such Affiliate. Unless otherwise provided by laws, Tmall shall undertake no liability for the above instructions, and you shall be solely responsible for settling any dispute with such Affiliate.

4、天猫如根据本协议划扣保证金, 将以书面方式 (包括但不限于电子邮件、站内信、传真等) 通知您并说明划扣原因及划扣金额。

If Tmall debit your deposit in accordance with this Agreement, it shall notify you in writing (including without limitation email, website message and fax), specifying the reason for such debit and amount debited.

5、如发生前述事件导致您需补缴保证金的，您同意天猫可通知支付机构依据本协议自您支付账户余额及待结算资金中划扣/止付相应金额以补足保证金。**如支付账户余额及待结算资金不足以补足保证金的，您应在天猫通知您后的 15 日内另行缴存保证金。**

If the aforementioned event results in the need for you to replenish the deposit, you agree that Tmall may notify Payment Institutions to debit/suspend payment with equivalent amount from the balance in your Payment Account or funds to be settled in accordance with this Agreement to make up for the deposit. **In case the balance in your Payment Account or funds to be settled is insufficient to make up for the deposit, you shall otherwise pay deposit within 15 days upon receipt of a notice from Tmall.**

6、发生下述情形，导致消费者权益受损或天猫对外支付/赔偿的款项超过可支配的商户保证金余额（该等支付或赔偿包括实际已经发生的或可能发生的），则您同意**天猫可要求支付机构将商户支付账户下的款项直接止付，或按照天猫要求的方式划扣相应金额至天猫指定账户，作为商户保证金，以备赔付消费者或直接支付给天猫以补偿天猫所遭受的损失：**

In case of any of the following circumstances which harms consumer rights and interests or causes the liability of Tmall for payment or compensation to a third party (both actual and contingent) exceeds the available balance of the Merchant's deposit, then you agree that **Tmall may instruct Payment Institutions to directly suspend any payment in the Merchant's Payment Account and/or transfer the corresponding amount to be deducted to Tmall's designated account as per Tmall's request which will be deemed as the Deposit for payment of**

compensation for consumers, or directly pay the same to Tmall so as to

compensate losses suffered by Tmall:

1) 商户申请破产或被申请破产;

A petition for bankruptcy is filed by or against the Merchant;

2) 商户因在天猫平台的经营行为导致其须对外承担远高于保证金余额的债务;

the Merchant shall undertake liabilities to a third party due to its operation on Tmall Platform, the amount of which is higher than the balance of deposit;

3) 有证据表明商户的经营状况严重恶化、丧失商业信誉、偿债能力明显下降或存在财产转移、套取保证金等丧失或可能丧失履约能力情形的。

There is evidence proving that the Merchant has lost or may have lost the capability to perform the Agreement, for example, the Merchant' s operations worsen seriously, the Merchant loses its commercial goodwill, the Merchant' s debt-paying capacity decreases significantly, or the Merchant attempts to transfer its assets or obtains the deposit through fraudulent means.

(四) 保证金的退还 (Deposit Return)

除本协议另有规定外, 若您满足本协议终止后的连续三个月内没有未完结的交易且没有未处理完毕的任何投诉、处罚或纠纷 (包括但不限于与天猫、消费者或其他第三方的争议或纠纷) 时, 天猫将在十 (10) 个工作日内将保证金余额退还至您的支付账户中/解除对您保证金的止付。

Unless otherwise specified herein, if the Agreement has been terminated for three months and you have no outstanding transaction or pending complaint, penalty or dispute (including without limitation controversy or dispute with Tmall,

Consumer or any other third party), Tmall will return the remaining deposit to your **Payment Account** to terminate the suspension of your deposit within ten (10) working days.

五、服务与费用 (Services and Fees)

在协议方之间未另行签订书面盖章版本的《天猫商户服务条款（保底）》之前，您应按照以下内容与天猫进行结算，否则应适用《天猫商户服务条款（保底）》的规定：

You shall settle with Tmall in accordance with the following provisions, unless the written Tmall Merchant Service Terms (Minimum Guarantee) is executed among and affixed with the seals of the Parties hereto, in which case the settlement shall be subject to Tmall Merchant Service Terms (Minimum Guarantee):

(一) 乙方提供的服务及收费 (Services Provided by Party B and Charges)

1、与互联网信息服务相关的软件服务 (Software Service in Relation to Internet Information Service)

1) 乙方为商户提供与互联网信息服务相关的软件服务，包括搜索商品、生成订单等服务的软件系统。**乙方据此向商户以实时划扣方式收取软件服务费，也称为类目软件服务费。**

Party B shall provide the Merchant with Software Service in Relation to Internet Information Service, including the software system for searching commodities, creating orders and other services. Party B will collect the software service fee from the merchant in real-time deduction manner, also known as the **Category Software Service Fee**.

2) 类目软件服务费以订单交易额为基数（以平台交易系统记录为准），当交易订单确认收货后，乙方通知支付机构以天猫公示的对应年度软件服务费费率实时划扣。如发生退货且您无过错，天猫将根据买家和您的天猫线上退款记录证实退货属实后向您退还因此退货交易实时划扣的类目软件服务费。**若您对买家进行线下退款的，无论您提供何种证据证明退款确实发生，天猫均不支持向您退还就退款部分已实时划扣的类目软件服务费。**

The Category Software Service Fee shall be based on the transaction amount of orders (subject to the transaction amount recorded in the transaction software system of Tmall Platform). After the receipt of the commodity under the purchase order is confirmed, Party B shall notify Payment Institutions to conduct real-time debit at the rate of annual fee for software service for the relevant year as published by Tmall. In case of return of the commodity non-attributable to you, Tmall shall, after verifying the return of commodity based on Tmall's online refund record of the Buyer and you, return to you the category software service fee debited in real time for such returned commodity. **If you return payment to the Buyer offline, regardless of any evidence provided by you to prove such refund, Tmall shall not return to you the category software service fee debited in real time for such refunded purchase.**

3) 服务开通时，若类目软件服务费的金额、费率、缴纳方式等收费方案全部或部分尚未明确的，考虑到收费不可避免，为保障合作顺利开展，您同意天猫在服务开通后合理期限内明确收费方案，并提前至少 7 天在天猫平台公示。收费方案一经生效，效力即追溯至服务开通时，您自服务开通之时起使用的服务即按新公布的收费方案进行收费。

If the charging plan for the annual fee or the category software service fee, such as the amount, rate, and the payment method, is not clear in whole or in part when you subscribe to the Services, considering that the fee is unavoidable, in order to ensure the smooth cooperation, you agree that Tmall can specify the charging plan within a reasonable period after you subscribe to the Services, and announce it on the Tmall platform at least 7 days in advance. When taking effect, the charging plan is retroactive to the date when you subscribe to the Services. In other words, you shall pay according to the charging plan from the date when you subscribe to the Services.

2、与积分系统相关的软件服务（Credit System Software Service Fees）

1) 积分系统软件服务费：在天猫平台的经营过程中，为提升消费者购物粘性，天猫联合商户共同开展会员忠诚计划并向商户提供积分系统软件服务，您同意使用积分系统软件（天猫提供的营销软件统称，其中积分系统软件支持包括但不限于天猫积分、天猫购物券、红包及天猫后续提供的其他类型积分发放，名称以天猫实际使用的为准，天猫积分、天猫购物券、红包及天猫后续提供的其他类型积分以下统称“积分”）向消费者发放各类型积分（持有积分的消费者后续可基于其会员身份享有会员忠诚计划中的各类型权益，如：88vip 相关权益等）。您同意以通过该软件向消费者发放的各类型积分数量或额度为计费基数，按一定费率比例向天猫指定支付账户支付积分系统软件服务费用（比例详见附件二、《天猫商户服务条款》或协议方另行签署的其他积分系统服务相关协议，其中交易额以平台交易系统记录的商户交易额为准，各类型积分数量或额度以天猫系统记录为准）。上述软件服务费用的划扣和支付由支付机构按天猫指令自动完成。如发生退货且您无过错，则天猫将根据买家和您的天猫线上退款记录证实退货属实后向您退还因此退货交易收取的积分系统软件服务费。**若**

您对买家线下退款的，无论您提供何种证据证明退款确实发生，天猫均不支持向您退还就退款部分已收取的积分系统软件服务费。

Credit System Software Service fee: In your operation on Tmall Platform, Tmall launches the member loyalty plan in collaboration with the Merchant and provide Merchant with credit system software service in order to increase the customers' loyalty, and you agree to use the credit system software (the collective name of all marketing software provided by Tmall, which supports the granting of credits, including without limitation Tmall credit, Tmall voucher, red packet and other types of credits subsequently provided by Tmall, the names of which shall be subject to those actually used by Tmall, Tmall credit, Tmall voucher, red packet and other types of credits subsequently provided by Tmall are hereinafter collectively referred to as "points") to grant the various types of credits to the customers (who possess the credits may enjoy various interests such as 88vip interests based on the member loyalty plan, and so on). Based on the quantity or amount of various types of credits granted to Consumers through such software, the Merchant agrees to pay the Credit System Software Service fee to such Payment Account as designated by Tmall at a certain percentage (the specific percentage shall be subject to Appendix 2 hereto, Tmall Merchant Service Terms or other agreement relating to Credit System Software Service separately signed by the Parties. The transaction amount shall be subject to the Merchant' s transaction amount recorded in the transaction software system of Tmall Platform , and the quantity or amount of various types of credits shall be subject to the record in Tmall system). The debit

and payment of such software service fees shall be completed automatically by Payment Institutions as instructed by Tmall. In case of return of commodity non-attributable to you, Tmall shall, after verifying the return of commodity based on Tmall's online refund record of the Buyer and you, return to you the Credit System Software Service fee charged for such returned commodity. **If you return payment to the Buyer offline, regardless of any evidence provided by you to prove such refund, Tmall shall not return to you the Credit System Software Service fee received for such refunded purchase.**

2) 积分的发放：在您依本协议约定支付积分系统软件服务费的前提下，天猫可按以下方式向消费者发放积分：

Granting of credits: Subject to your payment of Credit System Software Service fee pursuant to this Agreement, Tmall may grant credits to Consumers through the following methods:

a. 以您就每笔订单实际收到的款项为基数，按照一定比例确定天猫积分发放数量，向买家发放天猫积分（和/或天猫后续提供的其他类型积分，**该比例由天猫确定最低标准并可由商户自行调整提高**）。

Based on the amount actually received by you in respect of each purchase order, Tmall may determine the number of Tmall credits, and grant Consumers Tmall credits (and/or other types of credits subsequently provided by Tmall) at a certain percentage, **the minimum of which percentage shall be determined by Tmall and may be adjusted upward by the Merchant at its own discretion;**

b. 依规则中商户以天猫积分形式向买家进行赔付的规定，向买家发放相应积分。

In accordance with the provisions of the Rules in relation to compensation to Buyers in the form of Tmall credits, Tmall may grant Buyers the corresponding credits;

c. 按照活动方案或具体场景制定积分的发放、使用、失效等规则 **(前述规则由天猫确定并通过积分系统软件配置)** 并按照规则进行积分发放。

Tmall shall formulate the Rules on granting, use and forfeiture of credits based on the event plan or specific scenario **(which shall be determined by Tmall and implemented through the credit system software)**, and grant credits pursuant to such Rules.

3) 积分的使用：您同意买家有权按照积分具备的优惠让利功能或载明的优惠让利额度在您店铺中享受积分权益，买家可按优惠后的价格支付订单款项。基于您接受各类型积分权益，与天猫共同合作开展会员忠诚计划，过程中天猫将按买家在您店铺中使用积分获取的优惠让利金额，向商户支付相应合作费用 **(积分与前述费用的比例关系由天猫确定，并以公示或其他合理方式提前通知您)**。

Use of credits: You agree that the Buyer shall be entitled to the discount with credits in your store according to the discount associated with credits or the specified discount percentage, and the Buyer may pay the amount of a purchase order at the discounted price. Given that you accept various types of credits rights, and collaborate with Tmall on Member Loyalty Plan, Tmall will pay the relevant credit-related promotion collaboration fee to you based on the amount of discount obtained by the Buyer in your store with its credits (the specific percentage shall be

determined by Tmall and notified to you in advance through an announcement or other reasonable methods).

4) 积分合作费用退还和开票: 如消费者使用积分享受让利订单款项的交易最终被取消, 则您应向天猫退还天猫已支付的前述合作费用。

Refund and invoice of credit collaboration fee: If the transaction in which the Consumer enjoys discount with its credits is finally canceled, you shall return to Tmall the credit collaboration fee paid to you as aforementioned.

您不得与您的关联利益体 (指与您存在利害关系或从属、股权等经济关系的企业或个人, 包括但不限于与商户法定代表人和负责人有亲属关系等) 以获取积分合作费用为目的而进行交易 (以下合称“违规交易”)。若天猫根据您的相关交易情况等相关证据合理判断您存在上述违规交易的, 天猫可停止支付积分合作费用并追回已支付的全部积分合作费用, 且天猫会视您的违规交易情况选择是否接受您报名参加或继续参加天猫平台的营销活动。

You shall not conduct transaction with any associated party (enterprise or individual having associated interests or economic relationship (e.g., ownership or shareholding right) with you, including without limitation relatives of the legal representative or person-in-charge of the Merchant) for the purpose of obtaining credit collaboration fee (“Illegal Transaction”). If, based on your relevant transactions and other evidence, Tmall reasonably believes that you have conducted such Illegal Transaction, Tmall may stop payment of credit collaboration fee and recover all the credit collaboration fees already paid to you, and may determine based on your Illegal Transaction

whether to accept your application for participating in or for continuing to participate in the marketing activities on Tmall Platform.

您应在本协议签署后次年的 5 月 31 日前（如本协议在次年 5 月 31 日前终止，则以终止日期为准），按您上年度收到的积分合作费用向天猫开具足额、合法、正规的发票。

Prior to May 31 of the year immediately following the execution hereof (or prior to the termination date hereof if this Agreement is terminated prior to such date), you shall issue to Tmall gross, valid and formal invoices for the credit collaboration fees you receive for the previous year.

3、与保证金管理系统相关的软件服务 (Software Services System regarding Deposit System Management)

乙方为商户提供与保证金管理系统相关的软件服务，包括采用特定化方式进行专款专户管理、实现资金流转并进行记账管理、操作缴存/查询/对账等的软件系统。除协议方另行签署、达成收费协议外，乙方就上述服务暂不向商户收取费用。履约担保期间，商户缴存的保证金不计算利息。

Party B will provide software services regarding Deposit system management, including customized account manage through specific methods, capital flow realization and accounting management, payment/check/reconciliation operation etc. Unless any other independent charging agreement signed by both parties, Party B shall not charge any additional fees to the Merchant. And there is no interest regarding the Deposit paid by the Merchant during the performance guarantee period.

(二) 丙方提供的服务及收费 (Services Provided by Party C and Charges)

1、互联网信息服务：丙方作为 tmall.com 域名的所有者通过其网站页面为商户展示其商品和服务信息，为商户和消费者提供交易、交流的载体。丙方就其提供的互联网信息服务暂不向商户收费。

Internet Information Service: As the owner of the domain name tmall.com, Party C shall display information of the Merchants' commodities and services through its web pages, and provide a platform where the Merchants and Consumers conduct transactions and communicate with each other. Currently, Party C shall provide the Internet Information Service to the Merchants free of charge.

2、二级域名服务：丙方根据《天猫店铺命名规范》允许商户使用带有其品牌关键字、商号等标识的二级域名。二级域名的所有权归丙方，丙方可根据第三方的依法投诉或天猫自用原因收回二级域名。丙方就其提供的二级域名服务暂不向商户收费。

Secondary Domain Name Service: Party C shall allow the Merchants to use the secondary domain names with the key words of their brand, trade name and other marks in accordance with Regulations for Naming Tmall Stores. The title of such secondary domain name shall vest in Party C, and Party C may take back the same due to lawful complaint of a third party or for Tmall' s own use. Currently, Party C shall provide the Secondary Domain Name Service to the Merchants free of charge.

3、其他服务：在本协议履行过程中，丙方可能不时为商户提供各类营销服务、市场咨询服务、培训服务等，除协议方另行签署、达成收费协议外，丙方就上述服务暂不向商户收取费用。

Other Services: In the performance hereof, Party C may provide the Merchants with supply marketing service, market consulting service, training service and other relevant services from time to time. Unless the Parties reach and sign a separate charging agreement, Party C shall provide such services to the Merchants free of charge.

(三) 丁方提供的服务及收费

1、丁方通过天猫平台向您提供平台交易相关商家基础软件服务（以下简称“商家基础软件服务”或“基础软件服务”），包括能够支持您进行商品发布、交易管理、支付设置等操作的商家工作台软件系统。

Party D shall provide the Merchant with Basic Merchant Software Service in Relation to platform transaction (“Merchant Basic Software Service” or “Basic Software Service”), including the software system for posting commodities , managing transactions setting up payment and other services.

2、就上述服务，丁方将以订单交易额为基数（以平台交易系统记录为准）、按照天猫公示的软件服务费费率，向您收取平台交易相关商家基础软件服务费（以下简称“商家基础软件服务费”或“基础软件服务费”）。当交易订单确认收货后，天猫通知支付机构实时划扣。

The above service charged by Party D (“Merchant Basic Software Service Fee” or “Basic Software Service Fee”) shall be based on the transaction amount of orders recorded (subject to the transaction amount recorded in Tmall ’s transaction software system). After the receipt of the commodity under the purchase order is confirmed,Tmall shall notify Payment Institutions to conduct real-time debit at the

rate of annual fee for Basic Merchant Software Service for the relevant year as published by Tmall.

(四) 服务费发票 (Invoice of Service Fee)

服务费用发生且完成支付后, 您可于天猫店铺系统后台确认开票信息, 天猫将在收到确认信息后向您开具相应金额和对应类型的软件服务费增值税发票。**具体开票时间和间隔以规则规定为准。**

Where any service fees are incurred and paid, you may confirm the invoicing information through the back-end system of your store on Tmall, and Tmall will issue to you the VAT invoice at the corresponding amount for the corresponding type of software service fee after it receives the confirmation of information. **The specific time and frequency of issuing invoice shall be subject to the Rules.**

(五) 续签商户服务开通与费用结算(Subscription Renewal and Fee Settlement)

若您在本协议生效前已开通服务, 您在本自然年内可使用的天猫服务及应缴费用仍按照协议方在本协议生效前已达成的约定进行。本协议生效后, 天猫服务将于次年 1 月 1 日按照本协议约定更新并新开通, 续签商户按本协议可使用的天猫服务开通时间为次年 1 月 1 日。**特别注意: 如果是在本自然年内向天猫承诺了保底交易额和/或保底类目软件服务费的商户, 仍应按照《天猫商户服务条款(保底)》的约定与天猫结算费用。**

If you have subscribed to the Services prior to the effective date of this Agreement, the Tmall Services and fees payable by you during the current natural year will still be subject to the agreement reached by the Parties prior to the effective date of this Agreement. After this Agreement comes into force, the Tmall Service will be updated and renewed on January 1 of the following year in

accordance with the terms of this Agreement, and the subscription date of the Tmall Services you can use in accordance with this Agreement is January 1 of the following year. **Special Note: If you have promised Tmall a minimum transaction amount and/or a minimum category software service fee during this natural year, you shall still settle with Tmall in accordance with the provisions under Tmall Merchant Service Terms (Minimum Guarantee).**

(六) 商户在天猫平台经营期间与天猫及其关联公司产生的各类费用均以人民币为单位计算，**数值精确至分位，不足一分的部分按四舍五入计入。**

All fees, charges, and financial obligations arising from the Merchant's activities on the Tmall Platform, whether payable to Tmall or any of its affiliates, shall be denominated and calculated in Renminbi (RMB), with precision to the nearest fen (i.e., 0.01 RMB). **Any amount less than one fen shall be rounded to the nearest fen using standard rounding rules.**

六、店铺管理及服务规范 (Management of Store and Standards of Services)

(一) 入驻及经营范围 (Admission and Scope of Business)

您须符合当前的天猫入驻标准，具备合法的权利能力和行为能力缔结本协议并使用天猫相关服务，且您有义务依据相关法律法规、协议、规则及入驻标准向天猫提供**真实、合法、准确、有效**的信息和资料，包括企业经营资质、品牌授权、经营地址、联系方式、纳税相关信息等。您认可天猫根据具体情况对相关资料及开通申请进行的评估判断，审查结果以天猫评估判断为准。天猫仅在您符合条件（经天猫审查通过）的商品品牌、类目等经营范围内向您提供服务。

You must meet Tmall's current Admission Standards, have legal rights and capabilities to conclude this Agreement and use related Tmall Services, and you are obliged to provide Tmall with **true, legal, accurate and valid** information and materials in accordance with relevant laws, regulations, agreements, rules and Admission Standards, including business qualifications, brand authorization, business address, contact information, and tax-related information. **You acknowledge Tmall's assessment and judgment on relevant materials and subscription application according to specific conditions, and the assessment results shall be subject to Tmall's assessment and judgment. Tmall will only provide the Services to you within the business scope of your product brand, category, etc. that meet requirements (approved upon review by Tmall).**

为充分保障消费者的知情权及选择权，未经天猫同意，您不得允许他人使用或变相使用天猫向您提供的服务，否则天猫可终止向您提供服务。

In order to fully protect Consumers' right to know and choose, you shall not allow others to use, whether in disguised form or not, the Services provided by Tmall without the consent of Tmall, otherwise Tmall may terminate the provision of the Services to you.

为提升消费者体验、适应法律法规要求等，您认可天猫可制定或修改入驻标准，相关入驻标准的新增及变更天猫将提前至少 7 天在天猫平台网站公示。针对在入驻标准变更生效前已开通服务的商户，天猫将给予一定的合理期限，以便商户在相应合理期限届满前确保满足当前的天猫入驻标准。如合理期限届满时商户仍无法满足的，天猫将视实际情形有权对商户商品及（或）店铺予以管控，或直接解除本协议。

You acknowledge that Tmall may formulate or modify the Admission Standards in order to improve Consumer experience and comply with laws and regulations, which shall be announced by Tmall on Tmall Platform websites at least 7 days in advance. For those Merchants which have activated the Services prior to effectiveness of the Admission Standards, Tmall will grant them a reasonable period of time for the Merchants to meet the then current Admission Standards within such period. If any Merchant fails to meet such Admission Standards when the reasonable period expired, you agree that Tmall could take some restrictive actions on your commodity and shops or terminate this agreement directly.

(二) 店铺信息发布展示及交易管理 (Publishing and Display of Store Information and Transaction Management)

1、通过天猫提供的服务，商户有权通过文字、图片、视频、音频等形式在天猫上发布商品及/或服务信息、招揽和物色交易对象、达成交易。您声明并保证，您对您所发布的信息拥有相应、合法的权利，您所发布的信息及实施的行为均符合相关法律法规、国家强制性标准要求及本协议约定，并对店铺负有管理义务**(包括确保您自行发布或系统智能优化的信息符合前述约定)**，对您店铺中出现的违反国家有关法律法规及本协议的信息应立即删除；否则，天猫有权对您发布的信息依法或依本协议进行删除或屏蔽。

Through the services provided by Tmall, the Merchant have the right to publish product and/or service information, solicit and seek out transaction partners, and conclude transactions using text, images, videos, audio, and other forms on Tmall. You declare and warrant that you possess the corresponding and lawful rights to the information you publish, and that the information you publish and the actions

you take comply with relevant laws, regulations, national mandatory standards, and the terms of this Agreement. You are obligated to manage your store **(including ensuring that the information you publish or that is intelligently optimized by system complies with the aforementioned terms)**, and you must immediately delete any information in your store that violates relevant national laws and regulations or the terms of this Agreement. Otherwise, Tmall has the right to delete or block the information you publish in accordance with the law or the terms of this Agreement.

2、商户承诺拥有合法权利和资格发布有关商品销售信息并进行销售，且前述行为未对任何第三方合法权益（包括知识产权、物权、肖像权等）构成侵害。商户认可天猫对商品（包括服务类商品在提供服务过程中会使用到的产品）进货来源的不定期检查，并有义务保留进货来源凭证。对于无法提供合法进货来源凭证的，天猫将根据实际情况如消费者反馈、商标权人等相关权利人或第三方鉴定机构鉴定结果、商户的商品信息及交易数据等对商品（包括服务类商品在提供服务过程中会使用到的产品）的真伪作出判断，商户同意对此承担举证不能的不利后果。

The Merchant undertakes that it has the legal right and qualification to publish information concerning sales of commodities and sell such commodities, without infringement of the legitimate rights and interests (including without limitation Intellectual Property Rights, real right and right of portrait) of any third party. The Merchant acknowledges that Tmall may inspect source of commodities (including products that are used in the course of services provided by service commodities) from time to time, and that it has the obligation to keep documents evidencing

source of commodities. In case the Merchant fails to provide documents evidencing legitimate source of commodities, Tmall will determine the authenticity of commodities (including products that are used in the course of services provided by service commodities) based on the actual conditions, such as feedback from Consumers, result of verification provided by the trade mark owner and other related right holders or a third party evaluation agency, the Merchant' s commodity information and transaction data, and the Merchant agrees to assume the adverse consequences for failure to provide such evidence.

3、商户承诺在使用服务的过程中遵守诚实信用原则，不在交易过程中采取不正当竞争行为，不扰乱网上交易的正常秩序，不在天猫平台从事与网上交易无关的行为。

The Merchant undertakes that in its use of the Services, it shall adhere to the principle of good faith and integrity, not conduct any unfair competition in the process of transaction, not disturb the normal order of online transaction, and not conduct any act unconnected to online transaction on Tmall Platform.

4、基于互联网相关特性，商户理解并知晓其在天猫平台上发布的商品可以被位于全球不同国家及地区的消费者所浏览并购买。若商户未明确指示仅面向中国大陆销售时，天猫不会对可能产生的跨境销售进行干预。在此种情况下，商户须谨慎注意相关国家及地区有关法律、税收等规定，并确保拥有合法的权利和资格发布有关商品销售信息并进行销售，不会对第三方合法权益（包括知识产权等合法权益）构成侵害。

In consideration of relevant characteristics of Internet, the Merchant understands and is aware that the commodities it launches on Tmall Platform may be browsed and purchased by Consumers from different countries and

regions around the world. Unless the Merchant expressly specifies that its commodities will only be sold to mainland China, Tmall will not intervene in the possible cross-border sales thereof. Under such circumstance, the Merchant must pay special attention to the laws and regulations (such as those on taxation) enacted in the relevant countries and regions, and ensure that it has the legal right and qualification to publish information concerning sales of commodities and to sell such commodities, without infringement of the legitimate rights and interests (including Intellectual Property Rights and other lawful rights and interests) of any third party.

5、为实现商户在天猫交易及收款的需求，您需要开通必要的支付服务。您确认已充分阅读、同意各支付机构服务协议（[点此查看](#)）和《天猫支付服务说明函》（[点此查看](#)），并授权天猫基于前述支付机构服务协议及所适用的法律法规要求，向支付机构递交商户相关信息（包括商户主体信息、法定代表人信息、联系方式、交易订单信息等）。同时商户授权天猫向支付宝支付科技有限公司（下称“支付宝”/“支付宝公司”）发出指令关闭其支付宝账户（与商户本协议项下的店铺所绑定的支付宝账户）的“余额支付”功能。

To fulfill the Merchant's requirements for transactions and revenue collection on Tmall, it is imperative to activate requisite Payment Services. By proceeding, you hereby affirm that you have thoroughly reviewed and consented to all the terms set forth in the service agreements promulgated by each individual Payment Institution ([click here for review](#)) and Tmall Payment Services Explanation Letter([click here for review](#)), and further grant authorization to Tmall. This authorization permits Tmall, in strict adherence to

the aforementioned Payment Institutions service agreements and in compliance with pertinent laws and regulations, to transmit specific Merchant data to the Payment Institution. This data includes, but is not limited to, merchant entity particulars, information regarding the legal representative, contact information, and details pertaining to transaction orders. In addition, the Merchant authorizes Tmall to instruct Alipay Payment Technology Co., Ltd. ("Alipay") to close the function of "payment with balance" in its Alipay account (the Alipay account bound with the Merchant' s store hereunder).

6、在销售商品时，商户承诺作为最终零售商应使用自有货源、关联公司货源或通过天猫分销平台货源向买家发货，未经天猫事先书面许可，商户承诺不通过其他零售商、企业或网站向买家发货。如商户违反前述承诺，商户同意天猫可对商户店铺采取限制性措施或终止本协议等处理。

In its sales of commodities, the Merchant undertakes that as the final retailer, it shall deliver commodities to the Buyers with its own commodities, or those of its affiliates or from Tmall distribution platform instead of through other retailers, enterprises or websites, unless with the prior written consent of Tmall. Otherwise, the Merchant agrees that Tmall may take restrictive measures against the Merchant' s store, terminate this Agreement, or adopt other countermeasures.

7、商户承诺不会采取任何手段或措施（如明示或暗示用户或以其他方式）转移其可通过天猫平台在线达成的交易，或将天猫平台特定类目下的交易转移至其他类目，或达成交易

后不经由支付服务收取交易金额，包括不限于前述情形以规避或减少向天猫支付相关费用。

如商户违反前述承诺，商户同意天猫可终止本协议，并进行相关费用追缴。

You undertake not to take any means or measures (such as express or imply users or otherwise) to transfer the transactions that can be made online on the Tmall platform, or to transfer transactions under the specific category of the Tmall platform to other categories, or charge the transaction amount by bypassing the Payment Service after the transaction is concluded or any situation including but not limited as aforementioned to circumvent or reduce related fees payable to Tmall. If you violate the aforementioned commitments, you agree that Tmall may terminate this Agreement and recover the related fees.

8、商户有权自行决定商品及/或服务的推广方式。天猫会根据市场需求及商户经营情况等不时发起营销活动，并根据各活动的整体策略确定开放报名的商户范围及活动商户的优选维度。获得报名资格的商户可根据自身经营情况自主决定是否报名，选择报名活动的商户应确保始终符合营销活动基准规则、所报名活动招商规则及其他活动相关要求。**为共同保障用户体验及活动秩序，报名审核通过后，未经天猫同意，商户不得无故中止/终止与天猫就该营销活动所开展的合作。**

You have the right to determine the way you promote your products and/or services. Tmall will initiate marketing activities from time to time according to market demands and the Merchants' business operations, and determine the range of Merchants who can sign up for these activities and the preferred dimensions of the Merchants participating in the activities based on the overall strategy for each

activity. Eligible Merchants can decide whether to sign up for the activities according to their own business conditions. Merchants who choose to sign up for the activities shall ensure that they always comply with the benchmark rules for marketing activities, the enrollment rules for the activities they have signed up for and other related requirements. **In order to jointly ensure the good user experience and the order of the marketing activities, upon approval of its applications, the Merchant shall not suspend/terminate the cooperation with Tmall on the marketing activities for no reason without the consent of Tmall.**

9、天猫平台上的店铺框架由天猫统一进行自主设计、搭建及展示，包括店铺空间、页面及模块设计（如消费者保障）、功能嵌入、内容制作及展示等。其中涉及天猫活动相关模块及信息（如双十一活动平台氛围渲染等）的，天猫可综合活动心智、商户的服务水平、合规经营及竞争力等情况为特定商户开放及透出。商户可在店铺框架内自主进行店铺装修，商户店铺装修中如使用天猫知识产权素材的，应事先获得天猫书面同意。

The framework of stores on Tmall Platform is designed, built, and displayed uniformly by Tmall, including the design of a store' s space, pages, and modules (e.g. consumer protection), the embedding of functions, the creation and display of content, etc. Tmall may release and display modules or information related to Tmall' s events (e.g. the rendering of the platform during the Double Eleven event) to a Merchant based on the event details, the Merchant' s service level, operations compliance, and competitiveness, etc. The Merchant may refurbish its store within the store framework. In case any intellectual property assets of Tmall are used to

refurbish the Merchant' s store, the Merchant shall obtain Tmall' s consent in advance.

10、商户有义务按照买家就其天猫店铺交易实际支付的金额为买家开具合规的发票, 及就其天猫店铺实际交易额依法及时足额地向主管税务机关申报纳税。

The Merchant shall have the obligation to issue to the Buyer formal invoices based on the amount paid by the Buyer for the transaction at the Merchant' s Tmall store, and to report and make full payment of taxes to the competent taxation authority with respect to the actual transaction amount of its Tmall store.

(三) 消费者保障 (Consumer Protection)

1、商户了解并同意商户是消费者保障的责任主体。商户根据本协议约定通过天猫展示并利用支付服务向买家出售商品时应履行消费者基础保障、天猫无忧购、其他行业特色服务等消费者保障义务 (具体以天猫相关规则为准) 。

The Merchant understands and agrees that it is the subject of responsibility of Consumer protection. When the Merchant displays and sells to the Buyer the commodities through Tmall by using Payment Services in accordance with this Agreement, it shall perform the obligations of Consumer protection, including without limitation basic Consumer protection, Tmall worry-free purchase and other industry-specific services (the details of which shall be subject to relevant Rules of Tmall).

2、除法律另有规定外, 商户同意在消费者选择商户所发布的相关商品或服务并提交订单成功后, 商户与消费者之间的合同即成立。商户不得擅自撤销合同, 法律另有规定或双方另有约定的除外。

Unless it is provided for in laws, the Merchant agrees that the contract between the Merchant and the Customer shall take effect after the Customer select the Merchant' s commodities or services and submit the order successfully, unless it is provided for in laws or otherwise agreed by both sides, the Merchant shall not cancel the contract.

3、 商户同意当天猫受理买家提出的消费者保障维权和赔付申请时， 商户应积极配合， 在天猫要求的时限内提供相关证据材料。**商户同意天猫可以大众一般认知水平标准， 根据相关证据材料判定商户是否应根据本协议约定履行退款或赔付义务。**在判定商户应对消费者进行退款、 支付违约金或赔偿款的情况下， 商户同意天猫可在符合法律规定及本协议约定的情况下自商户的保证金中直接划扣相应金额支付给消费者， 天猫亦可使用自有资金代商户向消费者进行支付， **同时天猫有权就代为赔付的金额向商户进行追偿。**

The Merchant agrees that when Tmall accepts complaint and application for compensation from any Buyer in respect of Consumer protection, it shall actively cooperate and provide relevant evidence within the time limit required by Tmall. **The Merchant agrees that Tmall may determine whether the Merchant shall perform the obligations of refund or compensation pursuant to this Agreement after its examination of the relevant evidence with a knowledge level of the general public.** If Tmall determines that the Merchant shall refund, pay liquidated damages or compensation to the Consumer, the Merchant agrees that subject to compliance with laws and this Agreement, Tmall may directly debit the corresponding amount from the Merchant's deposit to Consumer, or Tmall may use its own funds to pay the same to the Consumer on behalf of the

Merchant, **under which circumstance Tmall shall have the right to recover such amount from the Merchant.**

(四) 平台治理 (Management of Platform)

1、为履行相关法律法规义务、保障消费者权益及维护平台秩序等目的，天猫可对商户的商品、交易及店铺等数据进行查阅。因网上交易平台具备海量信息及信息网络环境下信息与实物相分离等特殊特性，天猫无法逐一审查商品及/或服务，除法律有明确规定外，天猫无需对所有商户的交易行为以及与交易有关的其它事项进行事先审查，但若经消费者、监管部门、权利人等第三方通知天猫或天猫基于对商品、交易或店铺等多维度大数据综合分析发现平台上存在违法或不当行为或某个具体商户、具体交易事项、具体信息可能违反相关法律法规、本协议的，您认可**天猫以大众一般认知的知识水平标准对相关内容进行的合理判别，天猫可根据不同情况向商户发出询问或要求改正的通知，或直接作出删除相关信息、对商户店铺采取限制性措施或停止对商户提供服务等处理。**

In order to perform the obligations under the relevant laws and regulations, protect rights and interests of Consumers and maintain the order of the platform, Tmall may review data relating to the Merchant' s commodity, transaction and store. Given that there is an extremely large quantity of information on online transaction platform and that information on the Internet is not attached to physical commodities, it is impossible for Tmall to verify every and each commodity and/or service, and Tmall is not obliged to verify in advance all Merchants' transactions or other matters relating thereto, unless otherwise expressly specified in laws. However, if upon Tmall' s receipt of notices from Consumers, regulatory authorities, right owners or any other third parties, or based on Tmall' s

comprehensive analysis of multi-dimensional big data concerning commodities, transactions and stores, Tmall believes that there may be illegal or improper acts on the platform, or that a certain Merchant, transaction or information may have violated the relevant laws and regulations or this Agreement, you acknowledge that **Tmall may make reasonable judgment in respect of the relevant issues with a knowledge level of the general public, and send a notice to the Merchant for inquiry or requiring its correction, or directly delete the relevant information, or take restrictive measures against the Merchant' s store, or stop its provision of the Services to the Merchant, depending on the specific circumstances.**

当第三方以商户侵权为由要求天猫删除商户相关信息时, 除法律另有规定外, 您同意天猫对删除行为不承担任何责任, 如最终证明第三方为恶意或缺乏权利凭证, 您同意自行向第三方进行追责。

If a third party requires Tmall to delete certain information of the Merchant on the ground of infringement, unless otherwise provided by laws, you agree that Tmall shall not be liable for such deletion. If it is finally proved that the claim of such third party is of bad faith or lacks evidence, you agree to make claim against such third party on your own.

2、对于商户发布的违法违规或可能对消费者人身、财产权益造成侵害等存在合同无效或可撤销情形的交易, 商户同意天猫可对相关交易进行撤销, 对已完结的交易天猫可通知消费者退货退款。

In respect of the transaction of commodities published by the Merchant which violate laws and regulations or might cause personal injury or property damage to the Consumers which would cause the contract' s invalidity or cancellation, the Merchant agrees that Tmall may cancel such transaction, or notify Consumers to claim refund and return the commodities in case the transaction is completed.

3、天猫可基于履行相关法律法规义务、保障第三方合法权益、维护平台秩序等目的，制定并实施有关制止假冒或侵权行为的规则及流程，并保证商户能够合理地通知天猫。天猫依据商户通知，将根据相关法律法规、规则等，对天猫上假冒或侵犯商户知识产权的信息及账户进行处理。**对消费者寄送天猫进行判定而被天猫判定为假货的商品，商户同意天猫可联系工商管理部门直接予以销毁，无需退还商户。**

In order to perform the obligations under the laws and regulations, protect the legitimate rights and interests of third parties, and maintain the order of the platform, Tmall may establish and implement the Rules and procedures to prevent passing-off and infringement, and ensure that the Merchant is able to give a reasonable notice to Tmall of any passing-off or infringement. Upon receipt of a notice from the Merchant, Tmall shall handle the information and accounts in connection with passing-off or infringement of the Merchant' s intellectual property rights in accordance with the relevant laws, regulations and Rules. **With respect to the commodities submitted by the Consumer to Tmall for determination which have been determined by Tmall as fake, the Merchant agrees that Tmall may contact administration for industry and commerce to directly destroy such commodities instead of returning them to the Merchant.**

4、商户认可并接受天猫依照公示的相关规则及流程进行的商品品质抽检及真假鉴定。

对于经抽检证明存在质量瑕疵或经鉴定为假货的商品,抽检或鉴定所发生的所有必要合理费用由商户承担。

The Merchant recognizes and accepts that Tmall may carry out spot check of commodities in terms of their quality and authenticity in accordance with the published Rules and procedures. If the commodities are found to have quality defects or are determined as fake after the spot check, all necessary and reasonable expenses relating to the spot check shall be borne by the Merchant.

5、商户同意天猫对存在如下任一情形的品牌及其同类别商品上的关联品牌（包括同类别商品上共同使用的品牌及同一申请人注册并在同类别商品上分别使用的品牌等）在天猫平台实施禁售，无论上述品牌是否作为商品主要标识：

The Merchant agrees that Tmall may prohibit the sales of commodities on Tmall Platform if the brand of commodities and the associated brand of commodities in the same category (including without limitation the brand jointly used on the commodities in the same category and the brand registered by the same applicant and used on other commodities in the same category) fall into the following categories, whether such brands are the major identifiers of commodities:

1) 不符合强制性标准或严重不符合推荐性标准的；

Such brands violate the mandatory standards, or materially breach the recommendation standards;

2) 经天猫依据规则规定的特定方式及流程判定对他人商标、商品名称、包装装潢、企业名称、产品质量标志等构成仿冒或容易造成消费者混淆、误认的。

Such brands are determined by Tmall according to the specific methods and procedures provided by the Rules as counterfeiting the trade mark, commodity name, packaging, enterprise name, commodity quality mark of others, or as confusingly similar thereto.

6、 商户认可并接受天猫基于提升消费者体验及平台商户经营能力，从品牌、店铺等维度对商户经营进行的考核及天猫所制定并公示的相关考核标准，并承诺在考核中诚实守信，不对考核结果弄虚作假。如商户违反前述承诺或在考核中最终未能达标的，商户同意天猫可根据相关规则/考核标准终止本协议或对店铺采取相应处理（包括店铺监管、限制店铺类型等）。

The Merchant recognizes and accepts that in order to improve Consumer experience and the Merchants' operation capability on the platform, Tmall may establish and publish the Appraisal Standards and appraise the Merchants' operation from multiple aspects including branding and store. The Merchant undertakes that it will adhere to the principle of good faith and integrity in the process of such appraisal, and will not commit fraud or illegal act in respect of the appraisal result. In case the Merchant violates the above undertaking, or fails to pass such appraisal, the Merchant agrees that Tmall may terminate this Agreement or take countermeasures against the store (including monitoring the store, restricting the store' s type, etc.) pursuant to relevant rules/appraisal standards.

7、经国家生效法律文书或行政处罚决定确认商户存在违法行为，或者天猫有足够事实依据可以认定商户存在违法或违反本协议行为的，天猫有权依法或依据本协议在天猫平台公布商户的违法和/或违规行为及相应平台处置措施。

If it is determined in any effective national legal instrument or the administrative punishment decision that the Merchant has conducted illegal act, or if Tmall believes that the Merchant has conducted illegal act or violated this Agreement with sufficient factual evidence, Tmall shall have the right to publish on Tmall platform the Merchant' s illegal act and/or violation of regulations and the relevant countermeasures taken by Tmall Platform in accordance with laws or this Agreement.

(五) 数据使用及信息授权等 (Use of Data and Information Authorization)

1、对于商户在使用本服务过程中产生的数据，天猫尊重并依法保护商户及其他相关主体的数据权利。在此前提下，天猫收集、记录的商户在使用本服务过程中及其他天猫平台运营过程中所产生的数据的相关权利归属于天猫，且是天猫的商业秘密。**未经天猫事先书面同意，商户不得为本协议约定之外的目的使用前述数据，亦不得以任何形式将前述数据提供他人。**

Tmall respects and protects the data generated during the Merchant's and other related entities' use of the Services. Under this premise, Tmall has rights to collect and record data generated during the Merchant's the use of the Services and other Tmall platform operations and the said data constitutes Tmall's trade secrets. **The Merchant shall not use the foregoing data for purposes other than**

those agreed in this Agreement without the prior written consent of Tmall, nor shall it provide such data to others in any form.

2、天猫尊重和保护商户店铺交易额、某类目或某单品的交易额等商户商业秘密信息。为推广商户店铺或其商品，天猫可在商户参加天猫官方举办的市场活动期间（包括“双十一全球狂欢节”等）对外公示商户店铺的活动总交易额、某类目或某单品的交易额，亦可将上述信息作宣传推广使用。

Tmall respects and protects the Merchant's trade secrets such as the GMV of its store, the transaction amount of a certain category or an item. **In order to promote the Merchant's store or its products, Tmall may publicize the GMV of its store, the transaction amount of a certain category or an item during its participation in Tmall's official marketing activities (e.g. the Double 11 Global Shopping Festival). Tmall may also use the above information for promotion.**

3、为使您的商品、内容和/或相关品牌得到更好的展示及推广，在法律允许范围内，商户在此免费许可天猫对商户公示于其天猫店铺或账号发布的各类信息包括（商品商标、logo、文字、图片、视频、其他作品等）进行复制（如在多客户端、其他线上或线下渠道同步展示）、修改（如为适应用户视觉体验进行微调）、改编（如增加平台整体活动设计元素、丰富商品信息呈现形式）、翻译（如为满足海外买家的浏览需求进行翻译）、通过已知或不时新增的开发形式使用该等内容，并可再许可第三方基于上述目的及方式使用的权利。

为了更好地向您提供店铺经营相关的商户服务，您授权天猫对您的店铺账号发布信息、店铺经营信息、商品图片及详情、评价等相关信息进行加工、处理，并将加工、处理、分析、生成结果展示在天猫及其关联公司提供的官方产品或服务中，为您及其他商户提供服务。除协议方另有约定外，您的前述授权是免费且长期有效、不可撤销的。

为使您享受更好的平台智能服务、支持技术应用持续改进创新，您同意天猫及其关联公司免费使用您于您店铺或账号发布的各类信息（包括商标、logo、商品/店铺图文、短视频等以数据、文字、图片、视频等形式呈现的与店铺经营有关的信息），用于生成式智能服务提供和优化，包括：

- (1) 为使您满足商品发布规范等要求进行商品信息智能解析与补充；
- (2) 为商品信息多样化展示进行相关内容、派生作品的智能生成、提炼与呈现；
- (3) 机器学习、算法模型训练或其他数据分析和挖掘处理；
- (4) 其他平台创新服务。

Within the scope permitted by law, to enhance the presentation and promotion of your products、content and/or related brands , the Merchant hereby authorizes Tmall to copy (e.g. simultaneously display on multiple clients and alternative online or offline distribution channels), modify (e.g. fine-tune to adapt to the user visual experience), adapt (e.g. increase the overall design elements of the platform and enrich the presentation formats of product information), translate (e.g. to meet the needs of overseas buyers) , all kinds of information (e.g. product trademarks, logos, text, images,video content,and other works) it displays in its Tmall store or account free of charge, and freely allows Tmall to use such content through known or newly developed forms of exploitation, and to re-authorize the above rights .

To better furnish you with merchant services pertinent to your Tmall store operations, you hereby authorize Tmall to process, handle, and analyze information posted on your store account, your store operation information,

product images, details, reviews and related data. The processed, handled, analyzed, and derived results will be displayed within the official products or services provided by Tmall and its affiliates, serving to enhance services delivered to you and other Merchants. Unless otherwise agreed upon by both parties, your aforementioned authorization is gratuitous, perpetually valid, and irrevocable.

To enable you to benefit from superior platform intelligent services and support the continuous improvement and innovation of technology applications, you agree that Tmall and its affiliates may freely use various categories of information published in your store or account (including trademarks, logos, text or images of product/shop, videos, and information related to store operations presented in formats such as data, text, images, and videos) . This use is for providing and optimizing generative intelligent services, including:(1) To help you meet product posting standard and other requirements by intelligent parsing and supplementing product information; (2) To support diversified presentation of product information,through the intelligent generation, extraction and display of related content and derivative works; (3) For machine learning, algorithm model training, or other data analysis and mining processes; (4) For other innovative platform services.

4、天猫推出的所有官方产品、技术、软件、程序、数据及其他信息（包括文字、图标、图片、照片、音频、视频、图表、色彩组合、版面设计等）的所有权利（包括著作权、商标权、专利权、商业秘密及其他相关权利）均归天猫及其关联公司所有。除商户依据相关法律

有权进行商业性使用的数据外，商户同意不对天猫上其他任何数据作商业性使用，包括但不限于在未经天猫事先书面批准的情况下，以复制、传播或向他方披露等方式使用在天猫平台上其他用户展示的任何资料。

All rights (including copyright, trademark right, patent right, trade secrets, and other related rights) to all official products, technologies, software, programs, data and other information (including text, icons, images, photos, audios, videos, graphics, color combinations, and layouts) released by Tmall are owned by Tmall and its affiliates. Except for the data that the Merchant has the right to use for commercial purpose in accordance with the relevant laws, the Merchant agrees not to use any other data on Tmall for commercial purpose, including but not limited to using any material displayed by other users on the Tmall Platform by copying, transmitting or disclosing it to others without the prior written approval of Tmall.

5、商户须严格遵守网络安全与数据保护相关法律的要求，其中，商户在店铺经营过程中收集、使用及共享的信息中涉及用户个人信息的，须遵循合法、正当、必要原则，不得违反相关法律的规定及商户与用户之间的约定，包括：在无用户其他授权的情况下，商户应将用户的订单信息等与交易有关的必要信息仅用于《天猫隐私权政策》中约定的为满足用户购买商品或服务、完成售后服务的目的；禁止未经用户明确同意或超出用户授权范围使用其信息或非法向他人提供用户个人信息等。

The Merchant must strictly abide by the requirements of the laws related to network security and data protection. If the information collected, used and shared by the Merchant during its operations involves users' personal

information, the Merchant must follow the principles of lawfulness, justness and necessity, and must not violate the provisions of relevant laws and the agreement between the Merchant and users, including: In the absence of other user authorizations, the Merchant shall use the necessary information related to the transaction, such as users' order information, only for the purpose of satisfying the users' purchase of products or services and completing after-sales service as stipulated in the Tmall Privacy Policy; the Merchant shall not use users' information or illegally provide users' personal information to others without the users' explicit consent or beyond the users' authorization scope.

商户向天猫提交的信息中涉及如企业法定代表人身份证复印件或其身份证号码等个人敏感信息的, 商户保证其已获得相关个人信息主体的明确同意, 相关使用目的与行为符合本人意愿及相关法律的要求。

If the information provided by the Merchant to Tmall includes any sensitive personal information, such as the photocopy of the ID card of the corporate legal representative or his/her ID number, the Merchant warrants that it has obtained the express consent of such individual, and the relevant use and purpose thereof comply with his/her own intentions and the requirements of relevant laws.

6、商户应当采取必要的技术措施保障数据安全, 在发生或可能发生信息安全风险时, 应当立即采取补救措施, 按照规定及时告知用户并向有关主管部门报告。

The Merchant shall use necessary technical measures to ensure data safety, and take remedial measures immediately, promptly notify the user and report to the competent authority in accordance with rules where there is or may be any information security risk.

7、天猫将通过天猫平台陈列您所销售的商品及/或服务，并为用户提供信息分类、关键词检索、筛选及收藏等工具或功能模块以更好地匹配用户需求，**相应陈列结果可能由价格、销量、信用评价、服务水平、合规经营情况、用户偏好及操作、竞争力等多种因素综合确定。**除此以外，针对经天猫综合评估相对优质及符合用户需求的商品或服务，天猫可基于大数据算法及技术能力为商户提供面向用户推荐展示的机会，并可根据商户的商品及/或服务动态变化情况进行适时调整。

Tmall will display the products and/or services you sell on the Tmall platform, and provide users with tools or functional modules for information classification, keyword search, filtering and collection to better meet users' needs. **The corresponding display results may be determined by various factors such as prices, sales volume, credit evaluation, service level, compliance operation, user preferences and operation, and competitiveness. Moreover, for commodities and services of higher quality that match users' needs as identified through Tmall' s comprehensive assessment, Tmall may provide the Merchant with the opportunity to have such commodities and services recommended and displayed to users based on big data algorithms and technical capabilities, and may make adjustment when necessary based on the dynamic changes of the Merchant' s commodities and/or services.**

8、请商户关注并严格遵守可能影响商户交易行为的出口管制、贸易限制与经济制裁相关法规,以免对您或买家造成损失。**您承诺在未获得相关国家、地区或国际组织的许可之前,不会进行违反相应法规的境内或跨境交易活动,不出口、再出口、销售或供应受所适用法规所禁运或管制的商品至全面制裁的国家和地区、受制裁对象或其他受贸易限制国家和地区,并保证遵守适用于天猫平台相关软件、技术与服务的所有进出口相关法律法规限制。基于维护天猫平台交易秩序及交易安全的需要,如商户违反前述承诺的,天猫可在发现上述情形时主动执行下架或屏蔽商品,关闭相关交易订单及作出账户处置等操作。因此造成的损失,天猫不承担责任。**

You are required to pay attention to and strictly abide by the regulations related to import and export control, trade restrictions and economic sanctions that may affect your transactions, so as to avoid losses to you or buyers. **You undertake that, prior to obtaining the necessary licenses from the relevant national, regional, or international organizations, you will not engage in any domestic or cross-border transactions that violate applicable regulations, and shall not export, re-export, sell, or supply goods that are subject to embargo or control under applicable regulations to countries and regions with comprehensive sanctions, sanctioned entities, or other countries and regions with trade restrictions, and You also guarantee compliance with all relevant import and export laws and regulations applicable to the software, technology, and services related to this platform. Given the need to maintain the transaction order and transaction security of the Tmall platform, if the Merchant violates the aforementioned commitments, Tmall may remove or**

block the related products, close the relevant transaction orders, implement account-related measures, or perform other operations at its sole discretion after discovering the above violations. Tmall shall not be liable for any losses arising therefrom.

9、天猫可根据业务调整情况将本协议项下的全部或部分权利义务一并转移给其关联公司，此变更不会影响商户在此协议下的权益，此种情况将会提前 30 天以天猫平台网站公告的形式通知商户。

Tmall may transfer all or part of its rights and obligations hereunder to any Tmall' s Affiliate based on its business adjustment, which transfer will not affect the rights or interests of the Merchant hereunder, and will be notified to the Merchant at least 30 days in advance in the form of announcement on Tmall Platform website.

七、服务的开通和期限 (Service Activation and Service Term)

(一) 服务将在以下条件均满足后的十四 (14) 个工作日内开通：

Services shall be activated within fourteen (14) working days after all the following conditions are met:

1、您符合当前的入驻标准，向天猫提交信息后经天猫审查通过；

You meet the current Admission Standards and pass the review by Tmall after submission of your information to Tmall;

2、您与天猫以在线点击确认的方式签订本协议及《天猫商户服务条款》；

You sign this Agreement and the Tmall Merchant Service Terms with Tmall by clicking online the button of confirmation;

3、您的保证金已成功止付/缴纳;

Your deposit has been successfully suspended/paid;

4、在申请使用服务之前您没有发生过被天猫终止合作、违反与天猫的协议的情形;

You have never undergone the termination of cooperation by, and have never violated any agreement with, Tmall prior to your application for use of the Services;

5、天猫已向您发出服务开通通知。

Tmall has delivered to you a notice of Service Activation.

(二) 服务期自服务实际开通日起算，至 2026 年 12 月 31 日终止。

The service term shall commence as of the date of actual Service Activation and end on December 31, 2026.

服务期届满后，若不存在本协议所约定的协议终止情形，且天猫未要求您须就与天猫继续合作另行签署协议，同时您须满足天猫所公示的次年服务开通相关条件的，服务期可自动续展至次年 12 月 31 日，依此类推。

Upon expiration of the service term, unless in any circumstance under which this Agreement shall be terminated as set out herein, if Tmall never requires you to sign a separate agreement in respect of continuing your cooperation with Tmall, and if you satisfy the relevant conditions for Service Activation of the subsequent year as announced by Tmall, the service term may be automatically extended to December 31 of subsequent year.

(三) 如您签署或在线接受本协议后十四 (14) 个工作日内仍未满足本条第一款规定的所有条件, 或天猫因任何原因向商户发出拒绝提供服务的通知, 则天猫可不予开通服务并终止本协议。**服务未开通本协议即被终止的, 除法律另有规定外, 天猫不承担任何违约或赔偿责任。**

If you fail to satisfy all the conditions set forth in Clause 7.1 hereof within fourteen (14) working days after execution or online acceptance of this Agreement, or Tmall sends a notice of refusing to provide the Services to the Merchant for any reason, Tmall shall be entitled to reject the Service Activation and terminate this Agreement. **If this Agreement is terminated before Service Activation, unless otherwise provided by laws, Tmall shall assume no liability for breach or compensation.**

八、保密 (Confidentiality)

本协议所称商业秘密包括本协议、任何补充协议所述内容及在合作过程中涉及的其他秘密信息。任一方未经商业秘密提供方同意, 均不得将秘密信息向任何第三方披露、传播、编辑或展示。协议方承诺在本协议终止后的三年内仍承担此条款下的保密义务。因对方书面同意及国家行政、司法强制行为而披露商业秘密的或商业秘密已为公众所知悉的, 披露方不承担责任。

Trade secret referred to herein shall include the content of this Agreement and any supplementary agreement, and other confidential information involved in the cooperation process. Without the consent of the Party providing the trade secret, none of the Parties shall disclose, distribute, edit or display confidential information

to any third party. The Parties hereto undertake to be bound by the confidentiality obligations set forth in this clause until three years after the termination hereof. The disclosing Party will not be liable for disclosure of trade secret if the disclosure is agreed by the relevant Party in written form or is due to the mandatory requirement of the administrative or judicial authority or if such trade secret has entered the public domain at the time of disclosure.

九、反商业贿赂及反不正当竞争 (Anti-commercial Bribery and Anti-unfair Competition)

如您或您的雇员、股东、法定代表人、实际控制人或关联企业等向天猫或天猫关联公司的雇员或顾问等提供实物、现金、现金等价物、劳务、旅游等价值明显超出正常交往范畴的利益，则可视为您存在商业贿赂行为。**若天猫依据第三方举报、商户店铺经营情况等合理判断您可能存在商业贿赂行为的，天猫可对您采取店铺屏蔽、店铺监管等限制性措施；商户的商业贿赂行为一经确认，天猫有权立即解除与商户的所有合作关系（包括本协议及其他相关协议等）及向商户收取违约金或赔偿额，违约金以规则为准，赔偿额以天猫因该贿赂行为遭受的经济损失和商誉损失为计算依据。**

如商家发现天猫员工存在违反上述合作原则的不当行为，可以主动向天猫反映，天猫特别设立监督邮箱【fengkongguize@alibaba-inc.com】。天猫将会遵循保密、客观的原则就商家的投诉反映进行调查和处理，创造更公平健康的商业合作环境。

In the event that you or your employee, shareholder, legal representative, actual controller or affiliate offers any benefits in kind, cash, cash equivalent, labor services or travel to employees or consultants of Tmall or Tmall's Affiliates with a

value which significantly exceeds the normal range of a gift, it shall be deemed as a commercial bribery by you. **If Tmall reasonably determines that you may be involved in any commercial bribery based on whistleblowing by third parties or the operation status of the Merchant's store, Tmall may take restrictive measures such as store blocking and store suspension against you. Upon verification of the Merchant' s commercial bribery, Tmall shall be entitled to immediately terminate all cooperation relations (including this Agreement and other related agreements) with the Merchant and claim liquidated damages or compensation against the Merchant (the amount of liquidated damages shall be subject to the Rules and the compensation amount shall be calculated based on the economic loss and loss of goodwill suffered by Tmall owing to such bribery).**

Tmall set up a special email address [fengkongguize@alibaba-inc.com]. which you can report to, in case that a merchant finds any misconduct of Tmall employees in violation of collaboration principles on Anti-commercial Bribery and Anti-unfair Competition aforementioned. Tmall will investigate and deal with complaints from merchants to create a fairer and healthier business cooperation environment.

天猫将持续以提升客户美誉度、为商家创造价值为目标，严格遵守自愿、平等、公平、诚信的合作原则，充分尊重商家的自主经营权利。如商家发现天猫员工存在违反上述合作原则的不当行为，可以主动向天猫反映，天猫特别设立监督邮箱

【Tmall-tousu@Alibaba-inc.com】。天猫将会遵循保密、客观的原则就商家的投诉反映进行调查和处理，创造更公平健康的商业合作环境。

Tmall will continue to aim at improving the reputation of customers and creating value for merchants, strictly abide by the cooperative principles of voluntariness, equality, fairness and integrity, and fully respect the independent operation rights of merchants. If the merchant finds that the employee of the Tmall has violated the above Cooperation principles, he/she can report to the Tmall on his/her own initiative Tmall set up a special supervision mailbox [Tmall-tousu@Alibaba-inc.com]]. Tmall will follow the principles of confidentiality and objectivity to investigate and handle the complaints from merchants and create a fairer and healthier business cooperation environment.

十、有限责任 (Limited Liability)

(一) 天猫服务按“现状”和“可得到”的状态提供。您在确认接受本协议并开通天猫服务前已充分了解天猫平台的功能和服务特性并同意天猫无须就已存在的软件瑕疵、功能不足或任何需改进事项对您承担除法律有明确规定外的责任。

Tmall Services will be provided “as is” and “as available” . You have fully understood the functions and Services features of Tmall Platform before your acceptance of this Agreement and activation of Tmall Services, and agree that Tmall will not be liable to you for any existing software defect, functional inadequacy or any issues that needs improvement, unless otherwise expressly provided for in laws.

(二) 因天猫须向数量庞大的商户提供服务, 且服务内容复杂、技术要求高, 您认可天猫仅对因其**故意或重大过失或其他法律明确规定的情形**导致您的损失承担违约或赔偿责任, **具体金额以协议方协商或法律规定事项为限。**

As Tmall provides Services to a large number of Merchants, which Services are complicated and technically demanding, you acknowledge that Tmall will only assume the liability for breach or compensation in respect of any loss incurred by you owing to its **wilful or gross negligence or other circumstances expressly stipulated in laws, and such liability will not exceed the amount agreed by the Parties or stipulated in laws.**

(三) 使用天猫下载服务或获取任何资料的行为均出于您的独立判断并由您自行承担可能对电脑系统或资料灭失造成的损失风险。

Downloading Services or obtaining any data through Tmall by you is based on your own independent judgment and at your own risk for any possible damage to the computer system or loss of data.

(四) 天猫依法履行基础保障义务, 但对于 Internet 连接故障、计算机系统故障、通讯故障、电力故障、电脑病毒、黑客入侵、罢工、劳动争议、暴乱、起义、骚乱、火灾、洪水、风暴、爆炸、战争等不可抗力事件或第三方原因而造成的不能服务或延迟服务, 天猫并不承担法律明确规定外的责任。

Tmall will perform the basic obligations of safeguarding your use of Tmall according to laws, provided, however, that Tmall will not be liable for any failure of or delay in providing Services owing to Internet connection failure, computer system failure, communication failure, power shortage, computer virus, hacker's

attack, strike, labor dispute, rebellion, insurrection, riot, fire, flood, storm, explosion, war and other force majeure events or reasons attributable to third parties, unless otherwise expressly stipulated in laws.

(五) 天猫仅作为用户物色交易对象、交易磋商及获取与交易相关服务的地点。本协议的签署并不意味着天猫成为您在天猫上与第三方进行交易的参与者,对前述交易天猫仅提供软件服务,不对您行为的合法性、有效性及商品的真实性、合法性和有效性作任何明示或暗示的担保。

Tmall will only serve as a venue for users to look for counterparties, conduct transaction negotiations and obtain services relating to transactions. The execution of this Agreement does not mean that Tmall becomes a party to the transaction between you and a third party on Tmall, for which transaction Tmall only provides software Services, and does not make any guarantee, explicit or implied, for the legality or validity of your acts, or the authenticity, legality or validity of commodities.

(六) 您授权天猫可代您对买家履行消费者保障义务并承担赔付责任。当天猫代您向买家进行赔付时,您认可天猫以大众一般认知对交易纠纷进行的判责及判责结果,如最终证明天猫判责有误或赔付金额过高,除法律有明确规定外,您同意自行向受益买家追偿,不向天猫追责或主张任何权利。

You authorize Tmall to perform Consumer protection obligations and assume the liability for compensation to the Buyers on your behalf. In the case that Tmall makes compensation to the Buyers on your behalf, you acknowledge Tmall's determination of liability in respect of transaction disputes with a knowledge level

of the general public and the conclusion thereof, and agree to claim for refund against the relevant Buyers on your own if it is finally proved that such determination is incorrect or the amount of compensation is excessive, without holding Tmall liable therefor or making any claim against Tmall, unless otherwise expressly stipulated in laws.

十一、协议的终止 (Termination)

(一) 自然终止: 除协议方另有约定外, 本协议履行完毕、商户与支付宝公司签署的《天猫支付服务协议》因任何原因终止, 则本协议将同时终止。

Automatic termination: If this Agreement is completely performed, or the Tmall Payment Service Agreement executed between the Merchant and Alipay is terminated for any reason, this Agreement terminates simultaneously.

(二) 通知解除: 本协议任何一方均可提前三十 (30) 天以书面通知的方式终止本协议, **但商户向天猫承诺了保底交易额和/或保底类目软件服务费时, 在保底交易额未达成或保底费用未结清前, 商户不得行使单方解约权。如商户依据本条款约定通知解除本协议的, 须通过在线点击“确认退出”(具体名称以系统显示为准)按钮提出申请, 商户的店铺将立即进入“终止经营提前公示”状态(终止经营提前公示, 是指在一定时间内商户店铺首页显示该店铺即将终止经营的公告信息, 且店铺内所有商品信息无法通过搜索、访问店铺或商品链接等方式查看), 三十天 (30) 后本协议终止。**

Termination by notice: Either Party hereto may terminate this Agreement by giving a thirty (30) days' prior written notice, **provided that, if the Merchant has promised Tmall a minimum transaction amount and/or minimum category**

software service fee, the Merchant shall not unilaterally terminate this Agreement unless the minimum transaction amount is reached or the minimum fee is settled. Where the Merchant intends to terminate this Agreement by notice in accordance with this clause, it shall apply for termination of this Agreement by clicking online the button “Confirm to terminate” (the specific wording shall be subject to that displayed in the system), in which case the Merchant’s store shall immediately be in the status of “announcement prior to termination of business operation” (namely, for a certain period of time, announcement will be displayed on the homepage of the Merchant’s store that it is going to terminate its business operation and all commodities therein will be inaccessible through search, visit of the store or links of commodities), and this Agreement will terminate thirty (30) days thereafter.

(三) 发生下述情形时，除协议方另有约定外，本协议将自动解除：

Unless otherwise agreed by the Parties, this Agreement shall automatically terminate:

1、 商户存在违反本协议的情形，并依据本协议约定达到须被终止合作的程度；

if the Merchant breaches this Agreement to the extent that the cooperation must be terminated as agreed herein;

2、 商户存在违反本协议的情形，且经天猫通知并给予一定合理期限后仍未能整改至符合的，本协议将在相应的合理期限届满时自动解除；

upon expiration of the reasonable period for rectification designated by Tmall, if the Merchant breaches this Agreement and still fails to rectify such breach after being notified by Tmall with such reasonable period for rectification;

3、 商户保证金不足额，且未能自行补齐，经天猫催缴后仍未能在指定时间内补足；
if the Merchant's deposit is not full and the Merchant fails to supplement the shortfall and, after being demanded by Tmall, still fails to do so within the designated period;

4、 商户丧失主体资格（如企业注销或被吊销营业执照）；
if the Merchant loses its qualification as a legal entity (e.g., it is deregistered or its business license is revoked); or

5、 商户在超过九十（90）天的时间内未以天猫账户及密码登录天猫的。
if the Merchant fails to log in to Tmall with Tmall account and password for more than ninety (90) days.

（四） 协议终止后有关事项的处理：

Upon the termination hereof, the relevant matters shall be handled as follows:

1、 协议终止后， 天猫没有义务为商户保留商户账户中或与之相关的任何信息， 或转发任何未曾阅读或发送的信息给商户或第三方， 除法律另有规定外， 亦不就终止本协议而对商户或任何第三者承担任何责任； 在本协议终止前因商户行为所导致的赔偿和责任须由商户完全且独立地承担；

After termination of this Agreement, Tmall is not obliged to keep any information in or relating to the Merchant's account for the Merchant, or forward

any information that is not read or sent to the Merchant or third parties, and Tmall will not be liable to the Merchant or any third party in respect of such termination, unless otherwise provided for by the laws. Any compensation and liability caused by the Merchant's act before such termination shall be fully and solely assumed by the Merchant;

2、协议终止后，天猫有权保留商户的注册数据及交易行为记录。如商户在本协议终止前在天猫网络交易平台上存在违法或违反本协议约定的行为，天猫仍可行使本协议所规定的权利；

Tmall has the right to retain the Merchant' s registration data and transaction behavior record after the termination hereof. Tmall may still exercise the rights as provided herein against the Merchant' s violation of laws or breach of this Agreement on Tmall Platform prior to the termination hereof;

3、协议终止前，商户已上传商品信息尚未达成交易的，天猫可在本协议终止时删除相关商品信息；商户已与买家就某商品达成交易的，天猫可不撤销该交易，但可将协议终止情况通知买方。

For any commodity the information of which is uploaded by the Merchant prior to the termination hereof, Tmall may delete such information upon termination hereof if no transaction has been entered into with respect to such commodity, or maintain such information without revoking the transaction and notify the Buyer of the termination hereof if a transaction has been entered into.

4、商户天猫店铺将在天猫确认终止本协议时立即进入退出流程，商户在进入退出流程三十天（30）内可且仅可使用其天猫账户处理交易纠纷及与天猫之间的账务、发票结算事宜。

The Merchant's Tmall store will immediately enter the withdrawal procedures upon Tmall's confirmation of termination hereof. Within thirty (30) days after the Merchant enters the withdrawal procedures, the Merchant may use and only use its Tmall account to handle transaction disputes and accounting and invoice settlement with Tmall.

（五）如在协议期内，非因商户违约或过错导致本协议终止的，商户可凭天猫就本协议开具的发票原件（如已开具）及退款申请要求天猫退还未履行部分的服务费用至商户指定的银行账户。**其他情况下本协议发生终止时，未履行的服务费用将直接充抵商户应缴的违约金或赔偿金。**

In the event that this Agreement is early terminated not owing to the Merchant's breach or fault, the Merchant may request Tmall to refund fees for Services that are not performed to the bank account designated by the Merchant, with the original invoice issued by Tmall hereunder (if issued) and the application for refund. **If this Agreement is terminated under any other circumstances, the fees for Services that are not performed will be directly taken as a part of the liquidated damages or compensation payable by the Merchant.**

（六）本协议终止后，商户同意天猫可通知支付机构将商户的支付账户余额止付 30 天，用于解决本协议终止后的履约纠纷或对消费者、第三方的维权进行赔付。

After termination of this Agreement, the Merchant agrees that Tmall may notify Payment Institution to suspend the payment with the balance in the Merchant' s Payment Account for 30 days for the purpose of solving performance disputes or compensating Consumers and third parties' claims after such termination.

(七) 商户如对天猫解除合同有异议的, 应在收到解除合同的通知之日起 30 个日历日以内向有管辖权的人民法院提起诉讼。

The Merchant shall bring a lawsuit before the people's court with jurisdiction within 30 calendar days after receipt of the termination notice if it disagrees with Tmall's termination hereof.

十二、违约责任 (Liability for Breach)

(一) 商户存在违反相关法律法规、侵犯第三方 (如消费者、权利人或商品/服务的实际使用者) 权益或其他违反本协议的行为时, **商户应根据本协议向天猫支付相应的违约赔偿, 其中商户须赔偿天猫因此遭受的损失 (如有) 包括:**

If the Merchant violates the relevant laws and regulations, infringes rights and interests of third parties (e.g., Consumers, right owners or actual users of commodities/services) or otherwise breaches this Agreement, **the Merchant shall pay the corresponding liquidated damages to Tmall pursuant to this Agreement, and make compensation for the losses suffered by Tmall, if any, including.**

1、天猫因行政处罚、生效判决、法定标准范围内的调解而支付的罚款、违约金或赔偿款；

The fines, liquidated damages or compensation paid by Tmall for administrative punishment, effective judgment, and mediation within the scope of statutory standards;

2、天猫支付的合理律师费用、消除影响所支出的必要费用；
reasonable attorney's costs paid by Tmall and necessary expenses for elimination of negative influence;

3、天猫因此遭受的其他损失。
other losses suffered by Tmall arising therefrom.

(二) 商户因产品质量或出售假冒商品等被社会媒体爆出较大负面舆情或店铺经营出现严重违法违规行为的，天猫可要求商户支付不少于人民币 20 万元（大写：人民币贰拾万）作为违约金。

If the Merchant is widely reported by social media to sell inferior or fake products or commits a serious violation of the law in store operations, Tmall may require the Merchant to pay not less than RMB 200,000 as liquidated damages.

(三) 商户对天猫存在任何期限届满而未付的款项时，除本协议另有约定外，商户应自逾期之日起向天猫支付未付款项每日千分之五的违约金。

Unless otherwise agreed herein, if the Merchant fails to pay any amount that is due and payable to Tmall, the Merchant shall pay liquidated damages to Tmall from the day immediately after due date at 0.5% of the outstanding amount for each day of delay.

(四) 协议方根据本协议的规定行使单方解约权可不承担违约责任。但在**商户承诺向天猫缴纳保底类目软件服务费的情况下，商户如欲行使解约权，则须提前向天猫支付全额保底类目软件服务费，否则商户构成违约，应承担违约责任。**

Each Party may unilaterally terminate this Agreement pursuant to the provisions hereof without any liability for breach, provided, however, that, **if the Merchant that undertakes to pay Tmall the minimum category software service fee intends to terminate this Agreement, it must pay Tmall the minimum category software service fee in full prior to the termination hereof; otherwise, it shall be deemed as the Merchant's breach of this Agreement and the Merchant shall be liable for such breach.**

(五) 如商户违反本协议第五条（一）项的约定，逾期未能向天猫足额开具上年度积分合作费用发票或发票类型不符，商户同意向天猫支付上年度积分合作费用未开票金额 30% 的款项以弥补天猫损失。

If the Merchant fails to issue an invoice for the full amount or issues an invoice of an incorrect type to Tmall in respect of the credit collaboration fee of the previous year, breaching Clause 5.1 hereof, the Merchant agrees to pay an amount equal to 30% of the un-invoiced portion of the credit collaboration fee of the previous year as compensation for Tmall' s losses.

(六) 如商户违反本协议第六条（二）项第 7 款，**天猫可将商户全部保证金余额划扣作为违约赔偿**，还可就因此给天猫造成的其他损失（包括合理预期利益损失）向商户追偿。

If the Merchant violates Subparagraph 7 of Paragraph 2 of Article 6 of this Agreement, Tmall may deduct the Merchant's balance of all security deposit as

the compensation for breach of contract, and may also recover other losses (including the loss of reasonable expected interest) thereby caused from the Merchant.

(七) 天猫因故意或重大过失导致商户利益受损时，天猫对商户的违约或赔偿责任以商户直接的实际损失为计算依据。

In case of damage to the Merchant' s rights and interests owing to Tmall' s willful or gross negligence, Tmall' s liability for breach or compensation to the Merchant shall be calculated based on the Merchant's direct actual losses.

十三、商业关系终止 (Termination of Business Relations)

在使用天猫服务（包括本协议项下的各项服务内容等）的过程中，如商户或商户实际控制人、董事、经理、业务负责人等实施了下列的行为之一，则天猫有权立即终止商户继续使用天猫的任何服务（包括关闭商户于天猫开设的所有店铺等），天猫及天猫各关联公司亦可终止与商户的任何合作关系并不再开展任何商业合作：

Tmall shall be entitled to immediately terminate the Merchant' s use of any Services of Tmall (including but not limited to shut down all stores operated by the Merchant on Tmall), and Tmall and its Affiliates may also terminate any cooperation with the Merchant and never conduct any business cooperation with the Merchant, if during the use of Tmall Services (including but not limited to all Services hereunder), the Merchant or its actual controller, director, manager or person in charge of a certain business:

- 1、违背诚信经营原则或影响天猫商业声誉的商业贿赂行为；

Commits commercial bribery in violation of the principle of business integrity or affecting the business goodwill of Tmall; or

2、违背诚信经营原则或影响天猫商业声誉的涉嫌刑事犯罪行为；

Is suspected of criminal offense in violation of the principle of business integrity or affecting the business goodwill of Tmall; or

3、其他违背诚信经营原则或影响天猫商业声誉的行为。

Commits any other act in violation of the principle of business integrity or affecting the business goodwill of Tmall.

十四、有效通知 (Valid Notice)

(一) 有效联系方式 (Valid Contact Information)

您在入驻天猫时须提供真实有效的联系方式，若有发生变更的，您须及时更新并保持可被联系的状态。您在注册天猫时生成的用于登陆天猫平台接收、发送站内信、系统消息和阿里旺旺即时信息的天猫账号（含子账号）也可作为您的有效联系方式。天猫将向您的上述联系方式的其中之一或若干向您送达各类通知，而此类通知的内容可能对商户的权利义务产生重大的有利或不利影响，请您务必及时关注。

You must provide true and valid contact information at your registration at Tmall and timely update the same in case of any changes to ensure that you are always reachable. The Tmall account (including sub-accounts) generated in your registration at Tmall for login on Tmall Platform to receive and send website messages, system messages and Aliwangwang instant messages is also a valid way to contact you. Tmall will send notices to you through one or

more ways set forth above, and such notices may have significant impact, positive or negative, on your rights and obligations, to which you must pay appropriate attention.

(二) 通知的送达 (Delivery of Notices)

本协议下您对天猫的通知应以书面形式递交、以天猫客户满意部（浙江省杭州市余杭区文一西路 969 号 1 号邮局，邮编 311121，天猫客户满意部收）收讫为准。

Any notice sent by you to Tmall hereunder shall be in writing and subject to the receipt by Tmall Customer Satisfaction Division (No.1 Post Office, No. 969 West Wenyi Road, Yuhang District, Hangzhou, PC: 311121).

天猫通过您向天猫提供的有效联系方式发出通知，其中以纸质载体发出的书面通知，按照您提供联系地址交邮后的第五个自然日即视为送达。以电子的方式向您发出的书面通知（如在天猫平台公告、淘宝平台公告、向您提供的联系电话发送短信、向您提供的电子邮件地址发送电子邮件、向您的账号发送旺旺信息、系统消息以及站内信等）在发送成功后即视为送达。

When Tmall sends you notices using the valid contact information provided by you to Tmall, any written notice sent will be deemed delivered on the fifth calendar day after being posted according to the contact address provided by you if it is sent in hard copy, or once sent successfully if it is sent to you via electronic means (such as announcements on Tmall Platform or Taobao platform, SMS to the contact number provided by you, email to the email address provided by you, Aliwangwang message, system message and website message to your account).

对于因在天猫上的经营活动引起的任何纠纷，您同意法院等司法机关可以手机短信、电子邮件或阿里旺旺等通讯方式或邮寄方式向您送达诉讼文书等法律文书。您指定接收法律文书的手机号码、电子邮箱或阿里旺旺账号等联系方式为您在天猫注册、更新时提供的手机号码、电子邮箱联系方式以及在注册天猫时生成阿里旺旺账号，司法机关以前述联系方式发出法律文书即视为送达。您指定邮寄地址为您的法定联系地址或您提供的有效联系地址。您认可司法机关可采取以上一种或多种方式向您送达法律文书，采取多种方式的送达时间以其中最先送达的为准。且上述送达方式适用于各个司法程序阶段，包括但不限于一审、二审、再审、执行以及督促程序。

In respect of any dispute arising out of the operations on Tmall, you agree that the court and other judicial authorities may deliver to you the litigation instruments and other legal instruments by SMS, email, Aliwangwang or other means of communication or by mail. The contact number, email address, Aliwangwang account or other contact information designated by you for service of process shall be the contact number and email address provided by you in your registration at and updated on Tmall, and the Aliwangwang account generated in your registration at Tmall. Any legal instrument sent by the judicial authorities using such contact information shall be deemed as served. The postal address designated by you shall be your legal contact address or the valid contact address provided by you. You acknowledge that the judicial authorities may send legal instruments to you through any one or more ways above, and in case of service in more than one way, the notice shall be deemed as received at the earliest time. The above ways of service shall be applicable to all judicial proceedings, including but

not limited to the first instance, the second instance, retrial, enforcement and demand proceedings.

您保证所提供的联系方式准确、有效。如有变更，您应及时告知天猫和/或司法机关变更后的有效联系方式。如因提供的联系方式不准确或不及时告知变更后的信息，使法律文书无法或未及时送达，您将自行承担由此可能产生的法律后果。

You warrant that the contact information provided by you is accurate and valid. You shall timely inform Tmall and/or judicial authorities of the new valid contact information if there is any change. You shall be solely liable for the legal consequences of failure in or delay of service of process due to inaccurate contact information provided by you or your delay of notification of the new information.

十五、争议解决及其他 (Dispute Resolution and Others)

本协议之解释与适用，以及与本协议有关的争议，均应依照中华人民共和国法律。**鉴于协议方于天猫平台签订服务协议，因此协议方认可服务协议签订地为天猫平台经营地杭州市余杭区，并一致同意由本协议引起的及与本协议有关的争议，以协议签订地有管辖权的人民法院为第一审管辖法院。**

The interpretation and application of this Agreement, as well as any disputes arising out of or in connection with it, shall be governed by the laws of the People's Republic of China. Given that the Parties have entered into this Agreement **through the Tmall Platform, they hereby acknowledge that the place of execution of this Agreement is Yuhang District, Hangzhou**, the principal place of business of the Tmall Platform. **The parties further agree that any dispute arising from or in**

connection with this Agreement shall be subject to the exclusive jurisdiction of the competent people' s court in Yuhang District, Hangzhou, for the first instance.

如本协议的任何条款被视作无效或无法执行,则上述无效或无法执行条款可被分离且不影响本协议其余条款的有效性及可执行性。

If any provision hereof is found invalid or unenforceable, such invalid or unenforceable provision shall be severable, and the remaining provisions shall still have legal force and enforceability.

天猫于商户过失或违约时放弃本协议规定的权利,不应视为其对商户其他或以后同类之过失或违约行为弃权。

Tmall' s waiver of its rights hereunder in case of any negligence or breach hereof by the Merchant shall not be construed as its waiver in respect of any other or subsequent similar negligence or breach by the Merchant.

本协议英文仅供参考,中英文版本不一致者,以中文为准。如无其他额外说明,商户与天猫及其关联公司之间所签署协议中提及的《天猫服务协议》即指本协议。

This Agreement is made in both Chinese and English languages, in case of any discrepancy between the Chinese version and English version, Chinese version shall prevail. Unless otherwise stated, Tmall Service Agreement mentioned in the agreements signed between the Merchant and Tmall and/or Tmall' s Affiliates refers to this Agreement.

十六、协议附件清单 (List of Appendices)

本协议附件是本协议的组成部分，与本协议条款具同等法律效力。

The Appendices hereto constitute an integral part of and have the same legal effect with this Agreement.

附件一 授权书

Appendix 1: Letter of Authorization

附件二 天猫商户服务条款

Appendix 2: Tmall Merchant Service Terms

附件一（Appendix 1）：

授权书（Letter of Authorization）

致：各支付机构

To: All Payment Institutions

本商户特以此函通知贵司，本商户授权贵司按本商户与浙江天猫网络有限公司、浙江天猫技术有限公司及浙江天猫商业科技有限公司（以下合称“天猫”）共同缔结的《天猫商户服务协议》及其附件的规定在协议有效期内依天猫的指示直接对本商户在贵司处的支付账户余额及待结算资金进行款项止付和支付。

We hereby notify you with this letter that we authorize you to directly suspend the payment with and make payment from the balance in our Payment Account or funds to be settled at Tmall's instruction in accordance with the Tmall Merchant Service Agreement signed among us, Zhejiang Tmall Network Co., Ltd., Zhejiang Tmall Technology Co., Ltd. and Zhejiang Tmall Commercial Technology Co., Ltd..

附件二（Appendix 2）：

天猫商户服务条款					
Tmall Merchant Service Terms					
乙方提供的服务及收费					
Services Provided by Party B and Service Fees					
服务项目	费用名称	金额		付款方式	备注
Service	Name of Charges	Amount		Method of Payment	Notes:
与互联网 信息服务 相关的软 件服务 Software Service in Relation to Internet Informati	类目软件 服务费 Categor y Software Service fee	计算公式： Formula: 费率×交易 额 Rate × Transacti on amount	根据实际销售 的商品类目适 用具体费率（具 体详见天猫对 应年度各类目 年费类目软件 服务费一览表） According to the specific rate	由支付机构自 买家向商户支 付的订单款项 中实时划扣至 天猫收款账户 Real-time debit by Payment Institution fr om the	系统根据甲方实 际交易成功的商 品信息自动套用 天猫对应年度各 类目年费类目软 件服务费一览表 中所对应的费 率，按照“计算 公式”计算并实 时划扣。

on Service			applicable to the category of commodities actually sold (for details, please refer to the List of Category Serv ice Fee for Annually Subscribed Software in Each Category in the Relevant Year of Tmall)	purchase order price paid by the Buyer to the Merchant to Tmall's account for payment collection	The system automatically makes calculation based on the corresponding rate specified in the List of Category Serv ice Fee for Annually Subscribed Software in Each Category in the Relevant Year of Tmall accordi ng to the commodity information in a successful
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					transaction actually made by Party A, and makes the real-time debit of the service fee as specified in the “formula” .
与积分系统相关的软件服务 Software service in relation to the credit system	积分系统软件服务费 Credit System Software Service fee	计算公式：费率×天猫积分发放数量 Formula: Rate × Quantity of credits granted by Tmall		由支付机构自买家向商户支付的订单款项或商户支付账户中实时划扣至天猫收款账户 Real-time debit by Payment Institution from the	费率为 1%，具体费率以系统设定为准。 The current rate is 1% and subject to the specific percentage then specified in the system.

			purchase order price paid by the Buyer to the Merchant or from the Merchant's Payment Account to Tmall's account for payment collection	
丙方提供的服务及收费 Services Provided by Party C and Service Charges				
互联网信 息服务 Internet Informati on Service	展示服务 费 Display service fee	暂不收费 Free of charge for now	/	/

二级域名 服务 Secondary Domain Name Service	二级域名 服务费 Secondary Domain Name Service fee	暂不收费 Free of charge for now	/	/
其它服务 Other Services	市场调研 费等 Market survey fee, etc.	暂不收费 Free of charge for now	/	/
丁方提供的服务及收费 Services Provided by Party D and Service Charges				
商家基础 软件服务 Merchant Basic Software Service	商家基础 软件服务 费 Merchant Basic Software	计算公式： Formula 费率×交易额 Rate × Transaction amount	由支付机构自 买家向商户支 付的订单款项 或商户支付账 户中实时划扣 至天猫收款账	费率为 0.6%，具 体费率以系统设 定为准 The current rate is 0.6% and subject to

	Service fee		户. Real-time debit by Payment Institution from the purchase order price paid by the Buyer to the Merchant to Tmall's account for payment collection	the specific percentage then specified in the system.
服务期限 Service Term	服务开通之日起至 2026 年 12 月 31 日止（服务期自动续展的将延续至次年 12 月 31 日，依此类推） From the date of Service Activation to December 31, 2026 (to December 31 of the subsequent year in case of any automatic renewal of the service term)			

